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BLACKTOWN DEVELOPMENT CONTROL PLAN 2015

Part L

Stonecutters Ridge

Blacktown City Council

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1 Introduction

1.1 Purpose and aims of this Part

This Part is known as Blacktown Development Control Plan (DCP) 2015 Part L (Stonecutters Ridge). It has been prepared pursuant to the provisions of Section 72 of the *Environmental Planning and Assessment Act 1979.*

The purpose of this Part is to provide detailed controls to guide the future development of Stonecutters Ridge. The Plan supplements the site specific controls for the land set out in Blacktown Local Environmental Plan (LEP) 2015 Schedule 1 (Additional permitted uses).

The specific aim of this Part is to provide planning and design objectives and controls for the subdivision of land and the subsequent establishment of quality public domain and built form that recognise and reflect the particular characteristics of a golf course oriented lifestyle community.

1.2 Land to which this Part applies

This Part applies to all land within Stonecutters Ridge (the site) as shown at Figure 1.1.

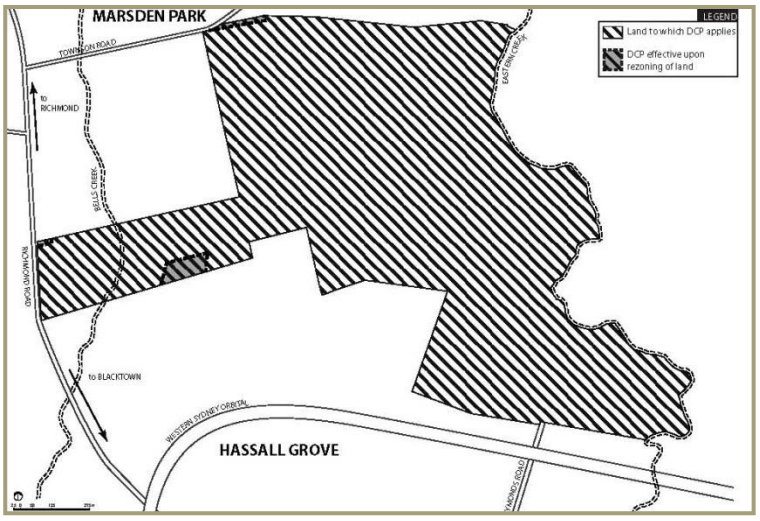


Figure 1.1 Land to which this Part applies

1.3 How to use this document

This Part is arranged into several sections. Each section contains a series of objectives and development controls. The objectives state what Council is seeking to achieve for future development. They:

(a) Incorporate the outcomes of the detailed environmental assessments undertaken for the Release Area as part of the rezoning process

(b) Reflect innovative lifestyle, community, subdivision and housing design, and best practice approaches to development.

The development controls contained within this Part are intended to ensure that the stated objectives are met and that high quality outcomes are delivered throughout the life of the development.

1.4 Relationship to other planning documents

This Part is to be read in conjunction with the following documents which contain controls and provisions applying to Stonecutters Ridge that are additional to those set out in this Part:

(a) Blacktown LEP 2015

(b) Blacktown DCP 2015 Part A - Introduction and General Guidelines

(c) Blacktown DCP 2015 Part C - Development in the Residential Zones

(d) Blacktown DCP 2015 Part F – Telecommunications Facilities

(e) Blacktown DCP 2015 Part G - Site Waste Management and Minimisation

(f) Blacktown DCP 2015 Part J - Water Sensitive Urban Design and Integrated Water Cycle Management

(g) Path Paving Policy (2010)

(h) Any relevant Development Agreement.

Where there is an inconsistency between this Part and any other Part of the DCP, the provisions of Part L prevail to the extent of the inconsistency. Where an element is not covered by Part L then other sections of Blacktown DCP 2015 may apply.

1.5 Developer design guidelines

In addition to the provisions and requirements of this Part, the developer intends to implement further building and landscape design guidelines via conditions attached to sales contracts, land release brochures for purchasers, and through the placing of covenants on titles.

A set of Developer Design Guidelines (DDGs) has been established by Medallist Developments Pty Ltd (the developer) to ensure a high quality built product for all developments. The DDGs deal with individual residential lot development and buildings, and will be prepared prior to the sale of individual lots. The DDGs will be enforced via a covenant with the allotment owner/developer.

To assist residents and their designers, a Design Review Committee will be operated by the developer. All forms of development must be approved by the Design Review Committee, irrespective of whether a DA is required or not. The Committee will review development proposals for compliance with the DDGs prior to their formal submission to Council. The design approval process is illustrated at Figure 1.2.

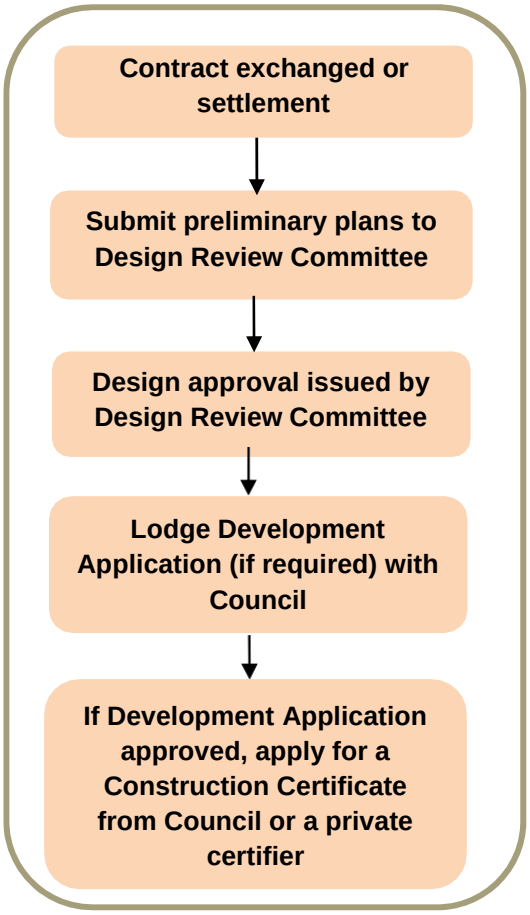


Figure 1.2 The design approval process

1.6 Development vision

The vision for Stonecutters Ridge is the growth of a strong and vibrant integrated residential golf course community. At its completion, the land to which this Part applies will be developed for:

(a) An 18-hole championship golf course with associated clubhouse facilities and tourist accommodation

(b) A new high quality public domain comprising public open space augmented by additional community open space, and new public roads, pedestrian paths and cycleway

(c) Approximately 1,000 residential lots accommodating a range of housing types

(d) New community and recreational facilities and small scale non-residential land uses to meet the needs of the future residential and tourist population.

The extent and location of future residential development areas within the site have been largely determined by the design and layout of the 18-hole championship golf course and the amount and location of land required to accommodate the associated clubhouse facilities and tourist accommodation (i.e. the "Clubhouse Precinct"). The layout of the golf course also influences road layout and design, connectivity and solar orientation.

The relationship between the land that is to be occupied by the golf course, the Clubhouse Precinct and the residual residential developable areas is shown at Figure 1.3. A plan of the approved golf course layout is included at Appendix 2. The golf course plan is provided for information purposes only to assist in the detailed design and assessment of future residential subdivisions and built form.

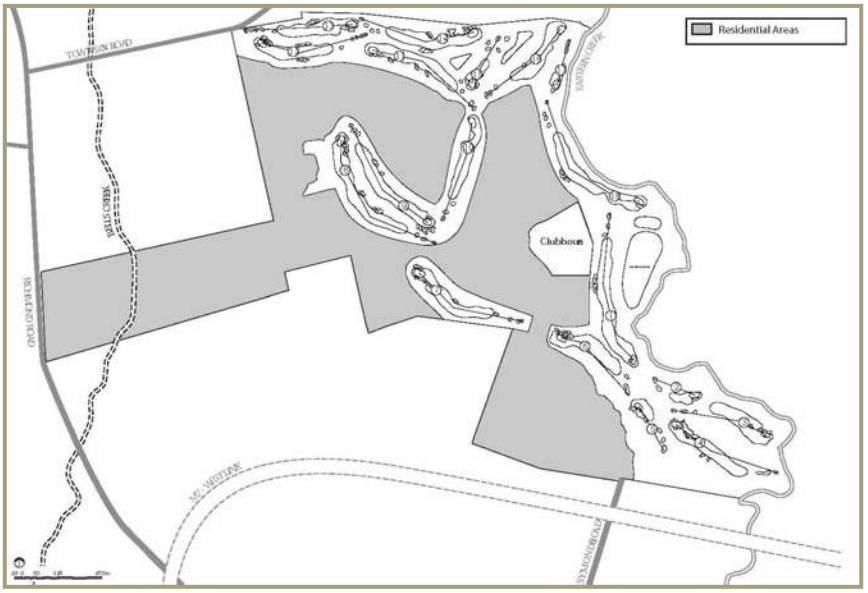


Figure 1.3 The golf course layout

1.7 Development objectives

All development is to facilitate the achievement of the following development objectives:

1.7.1 Environmental stewardship

(a) To protect the Eastern Creek and Bells Creek riparian corridors and to recognise their significant environmental, scenic and aesthetic values

(b) To recognise, respect and manage the cultural and archaeological significance of the Aboriginal heritage site

(c) To retain and enhance significant trees and vegetation where possible to preserve the natural and ecological values of the land

(d) To promote housing and other urban development that meets environmental sustainability objectives in terms of water, soil, flora and fauna, transport and energy use.

1.7.2 Community identity and human services

(a) To create a residential environment that fosters a sense of community and a sense of place

(b) To offer a range of lifestyle choices in terms of housing type and size that will accommodate a variety of household structures.

1.7.3 High quality public domain and healthy outdoors lifestyle

(a) To maximise opportunities for future residents to access and to enjoy the outdoors, including public and community parks, walking and cycling paths, and the Clubhouse Precinct community and recreational facilities

(b) To provide high quality landscaping and open space elements that respect site constraints, promote active use of open spaces and create opportunities for community recreation and social contact

(c) To create a highly permeable street network and pedestrian and cycle paths that provide connectivity between residential areas, public open spaces, transport nodes and community and recreational facilities and services

(d) To provide safe and attractive streetscapes which encourage community interaction and enhance the amenity of homes.

1.7.4 Residential amenity

(a) To promote housing that provides for a high standard of residential amenity in terms of orientation (for solar access and/or views and outlook), energy efficiency, privacy and private open space provision

(b) To ensure appropriate and conveniently located community and recreation facilities are provided to serve the needs of future residents

(c) To protect future residents from potential amenity impacts associated with the emission of dust, noise and odours from the adjoining extractive industry to the north

(d) To establish a safe and functional public domain and to ensure that non-residential land uses are located and designed to minimise potential adverse impacts on residents.

1.7.5 Architectural quality and design

(a) To recognise the importance of architectural character as a distinct point of difference

(b) To ensure that residential and non-residential buildings clearly define public and private spaces, frontages and corners

(c) To encourage the use of design features, materials and finishes that contribute to a high quality private and public domain

(d) To encourage innovation in housing design.

2 Subdivision

2.1 Urban design

This section of Part L contains the objectives and development controls relating to the overall site structure, including residential villages, subdivision layout principles, lot orientation and configuration, staging and the requirements for the establishment and management of bush fire asset protection zones.

2.1.1 Urban structure

- **Objective**

  To conceptually illustrate the intended development pattern for the land.

- **Controls**

  (a) Development is to be undertaken generally in accordance with the Urban Structure Plan at Figure 2.1

  (b) DAs for subdivision are to demonstrate how the development principles shown on the Urban Structure Plan have been responded to

  (c) The detailed subdivision design is to implement the Urban Structure Plan, having regard to the achievement of the other objectives and development controls set out in this Part of the DCP.

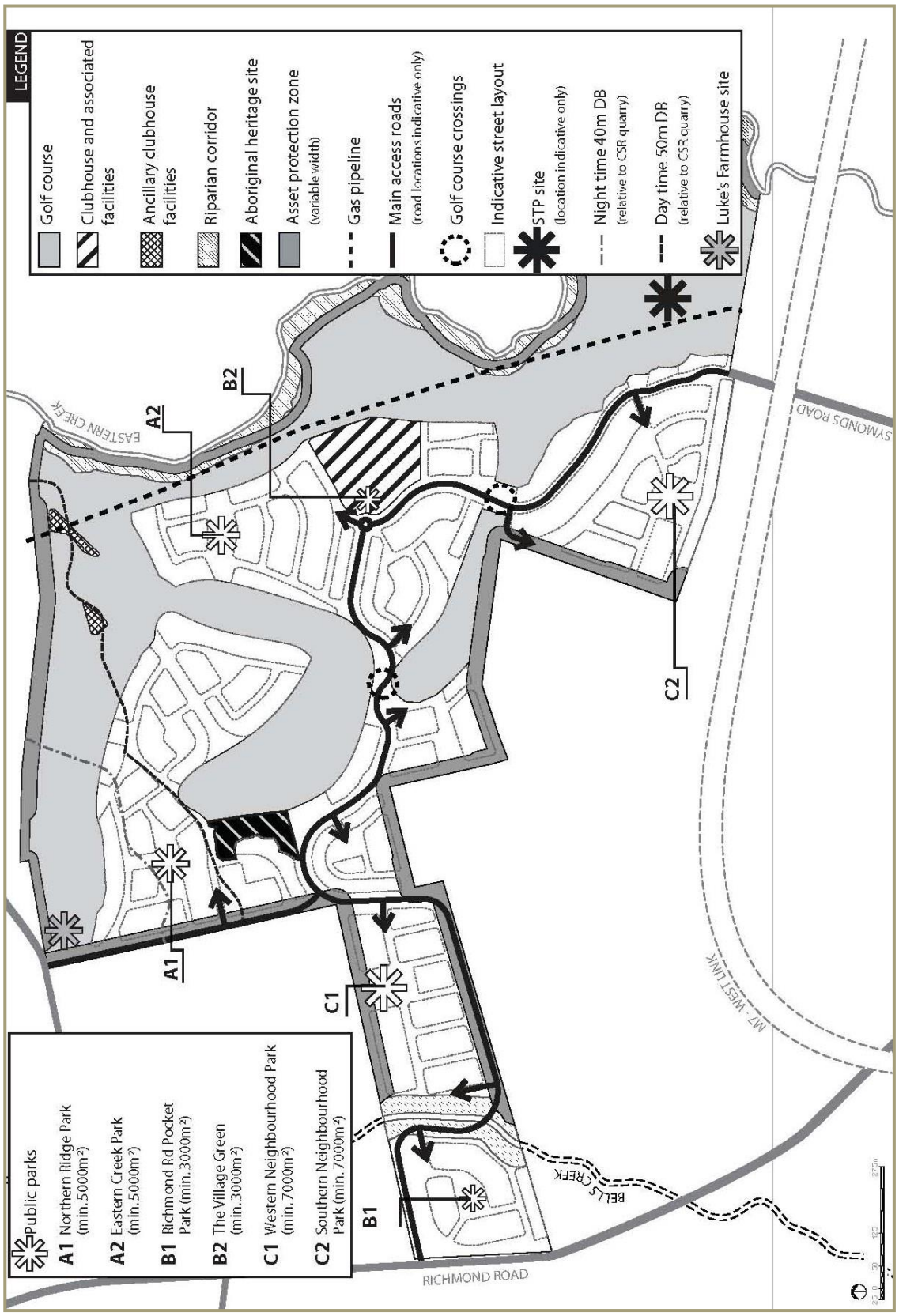


Figure 2.1 Urban structure plan

2.1.2 Residential villages

- **Objectives**

  (a) To help create a sense of community by identifying distinct residential villages within the overall development site, each with a strong focal point and individual sense of character/place

  (b) To encourage a diversity of housing types and sizes within each residential village and to ensure that attached dwellings and multi dwelling housing are located in areas with a high level of amenity.

- **Controls**

  (a) The minimum allotment size of all built forms is to be in accordance with Clause 4.1 (Minimum subdivision lot size) of Blacktown LEP 2015. This clause should be read in conjunction with the LEP Lot Size Map.

  (b) Development of the residential areas of the site is to create 5 residential villages generally as shown at Figure 2.2

  (c) Within the 5 residential villages, attached dwellings and multi dwelling housing is to be generally located around public parks, adjoining the golf course and/or in close proximity to the Clubhouse Precinct as shown at Figure 2.3

  (d) The detailed subdivision design, including the number, size and orientation of residential lots, is to encourage the creation of the desired future character for each village as set out at Table 2.1

  (e) The approximate number of residential allotments to be created within the overall site is 1,000.

Village	Desired future character
Western Village	The Western Village is located between Richmond Road and the site's central ridgeline. Focal points of this village will be the Bells Creek Riparian Corridor, the 3,000sq.m Richmond Road Pocket Park (Park B1) and the 7,000sq.m Western Neighbourhood Park (Park C1). Residential development will comprise predominantly detached housing with attached dwellings and multi dwelling housing generally located around the two public parks.
Northern Village	The Northern Village is located in the northern portion of the site. Focal points of this village will be the 5,000sq.m Northern Ridge Park (Park A1), the Aboriginal heritage site and the golf course, which wraps around the residential development area in this location. Residential development will comprise a mix of dwelling types with areas of attached dwellings and multi dwelling housing generally located around the public park and where good amenity is afforded by the golf course.

Village	Desired future character
Clubhouse Village	The Clubhouse Village is located in the eastern portion of the site adjoining the Clubhouse Precinct. Focal points of this village are the golf course clubhouse and associated community and recreational facilities (including a 3,000sq.m Village Green), the 5,000sq.m Eastern Creek Park (Park A2) and the extensive golf course frontage that encircles this village. Development comprises predominantly attached dwellings and multi dwelling housing to take advantage of the adjacent amenities.
Southern Village	The Southern Village is located in the southern portion of the site near the Symonds Road entry. The focal point of this village will be the 7,000sq.m Southern Neighbourhood Park (Park C2). Development will comprise predominantly detached housing with attached dwellings and multi dwelling housing located around the public park.
Central Hilltop Village	The Central Hilltop Village is located at the centre of the site. Focal points for this village will be small community pocket parks and the extensive views to the north and east out over the golf course. Development will comprise a mix of predominantly detached dwellings with areas of attached dwellings and multi dwelling housing located around open space areas and fronting the golf course.

Table 2.1 Desired future character of residential villages

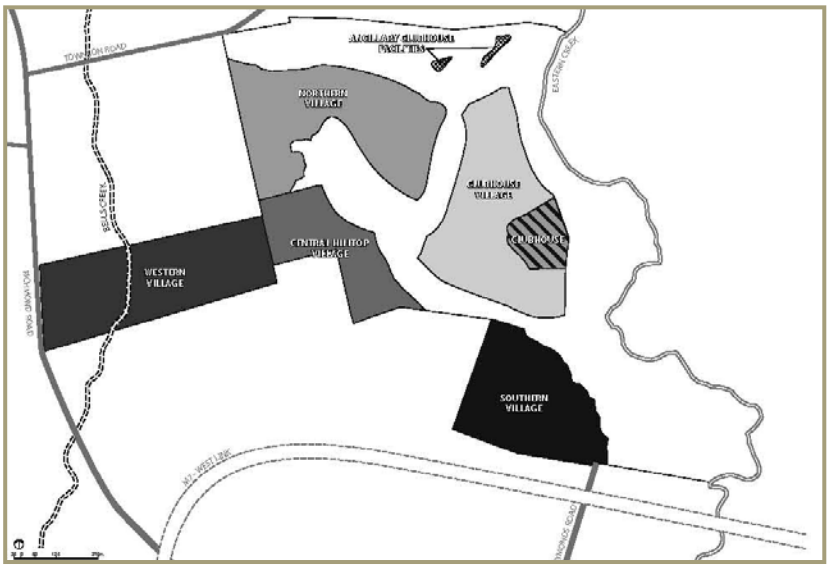


Figure 2.2 Residential villages plan

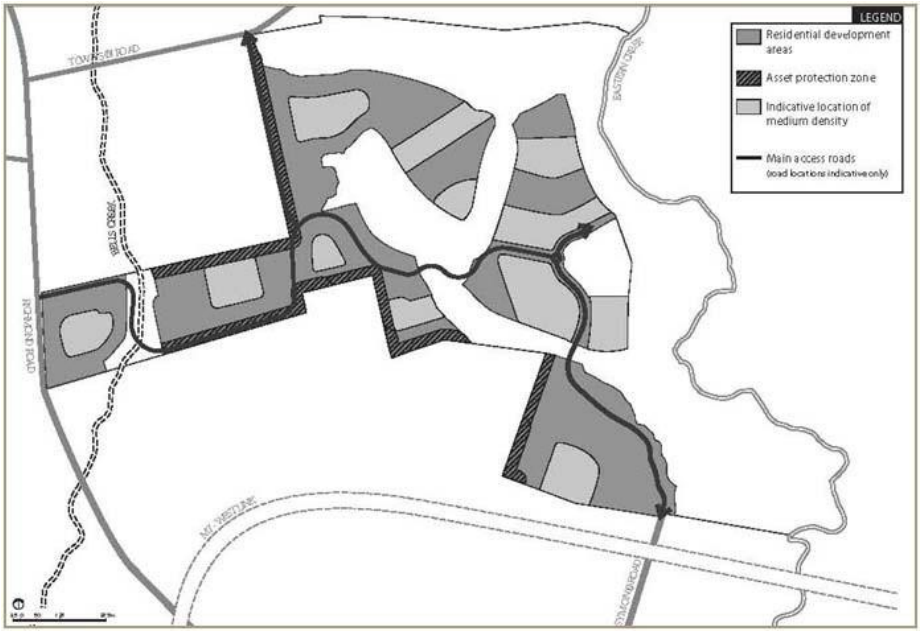


Figure 2.3 Residential development areas

2.1.3 Staging

- **Objective**

  To ensure the orderly development of the land and assist in the coordinated programming and provision of necessary infrastructure and community services.

- **Controls**

  (a) the indicative staging of the residential development areas is shown at Figure 2.4

  (b) core infrastructure, services and facilities are to be established at the early stages of development

(c) infrastructure and community facilities will be provided in accordance with the requirements of the relevant Development Agreement for the subject land.

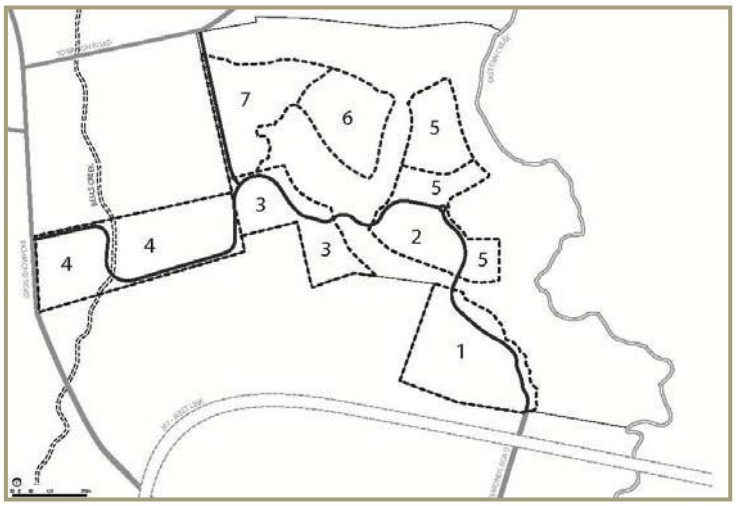


Figure 2.4 Indicative residential staging plan

Note: More than one stage may be under construction at any one point in time. The numbering on Figure 2.4 need not reflect the chronological order of development.

2.1.4 Subdivision layout

- **Objectives**

(a) To recognise the unique constraints and opportunities that the golf course design and layout establishes for the subsequent residential subdivisions

(b) To capitalise on the high level of residential amenity afforded by the golf course

(c) To establish a subdivision layout that utilises the residential development areas efficiently, maximises the natural attributes of the site and clearly defines and reinforces the public domain.

- **Controls**

The subdivision layout is to:

(a) Respond to the natural site topography, the location of existing significant trees, solar design and view maximisation principles, and interface with the golf course

(b) Create a legible and permeable street hierarchy

(c) Provide pedestrian connectivity within each residential village as well as between the residential areas and public open space areas, public transport nodes and community/recreation facilities as appropriate within the context of the golf course layout

(d) Use landscaping to strengthen the street hierarchy and other elements of the public domain

(e) Create a variety and mix of allotment sizes and dwelling types within each residential village

(f) Maximise opportunities for dwellings to front onto public parks, community open spaces and the golf course

(g) Ensure that public and community parks and key pedestrian links are conveniently located and highly visible

(h) Ensure that the location of roads and other infrastructure minimises land modification (i.e. cut and fill).

2.1.5 Lot orientation and configuration

- **Objectives**

(a) To recognise the influences of the golf course layout and associated road hierarchy on subsequent allotment configuration and design, particularly in relation to lot orientation

(b) To ensure that all residential lots are afforded a high level of amenity in terms of solar access, views/outlook and/or proximity to public and community open spaces, dependent upon their location in relation to the golf course layout.

- **Controls**

(a) The preferred lot orientation is either on a north-south or east-west orientation. Residential lots with other orientations will generally be provided with other amenities such as views/outlook to public open space, community parks and/or the golf course

(b) Residential lots should be orthogonal in geometry. The use of battle-axe lots is to be minimised

(c) Preferred dimensions and lot configurations for different dwelling types are to be in accordance with the controls set out in Part C (Development in the Residential Zones) of the DCP

(d) Corner lots are to be designed to allow dwellings to positively address both street frontages (refer to Part C of the DCP) and to have 5m x 5m splay corners at intersections.

2.1.6 Bush fire asset protection zones

- **Objectives**

(a) To ensure the protection of life and property from the threat of fire

(b) To manage the ongoing fire risk on the site.

- **Controls**

DAs for subdivision within 100m of Bush Fire Prone Land (see Figure 2.5) are to demonstrate compliance with the bush fire provisions for development contained within the Rural Fire Service's guide on *Planning for Bush Fire Protection 2006.*

- **Asset Protection Zones (APZs)**

  (a) The location and widths of APZs are to be provided in accordance with Figures 2.5, 2.6 and 2.7.

  (b) APZs:

    (i) Are to be located wholly within the development site

    (ii) May incorporate flood prone land and parts of the land occupied by the golf course

    (iii) May be used for open space and recreation subject to appropriate fuel management

    (iv) May incorporate private residential land, but only within the building setback. No dwellings are to be located within the APZ.

  (c) APZs are not required:

    (i) In areas adjoining remnant woodlands where habitable buildings are not proposed (e.g. golf course or open space parkland within flood prone land), or

    (ii) For habitable development adjoining the Aboriginal heritage site, which is to be carefully managed as part of the Environmental Management Plan for the golf course.

  (d) The maintenance of APZs is the responsibility of individual allotment owners, except where maintained over the golf course or open space areas.

- **Access design criteria**

  (a) The relevant access design criteria at Section 4.1.3 of *Planning for Bush Fire Protection* is to be incorporated into the development and applied to public roads (including the perimeter road and the internal road system) and property access roads (i.e. roads located on private property)

  (b) All APZs are to be bounded by a perimeter fire trail/road that is linked to the public road system at regular intervals in accordance with *Planning for Bush Fire Protection* (see Figures 2.6 and 2.7)

  (c) Perimeter roads/trails are to be located wholly within the boundaries of the development site.

- **Water supply**

  (a) Reticulated water is to meet the standards contained within Section 4.1.3 of *Planning for Bush Fire Protection*

  (b) External fire hydrants are to be located in accordance with *Australian Standard 2419.1-1994*.

- **Fuel management within APZs**

  (a) APZs are to be maintained in accordance with *Planning for Bush Fire Protection*

(b) Care should be taken with the landscaping of areas within the perimeter of the site to avoid the need for additional APZ setbacks.

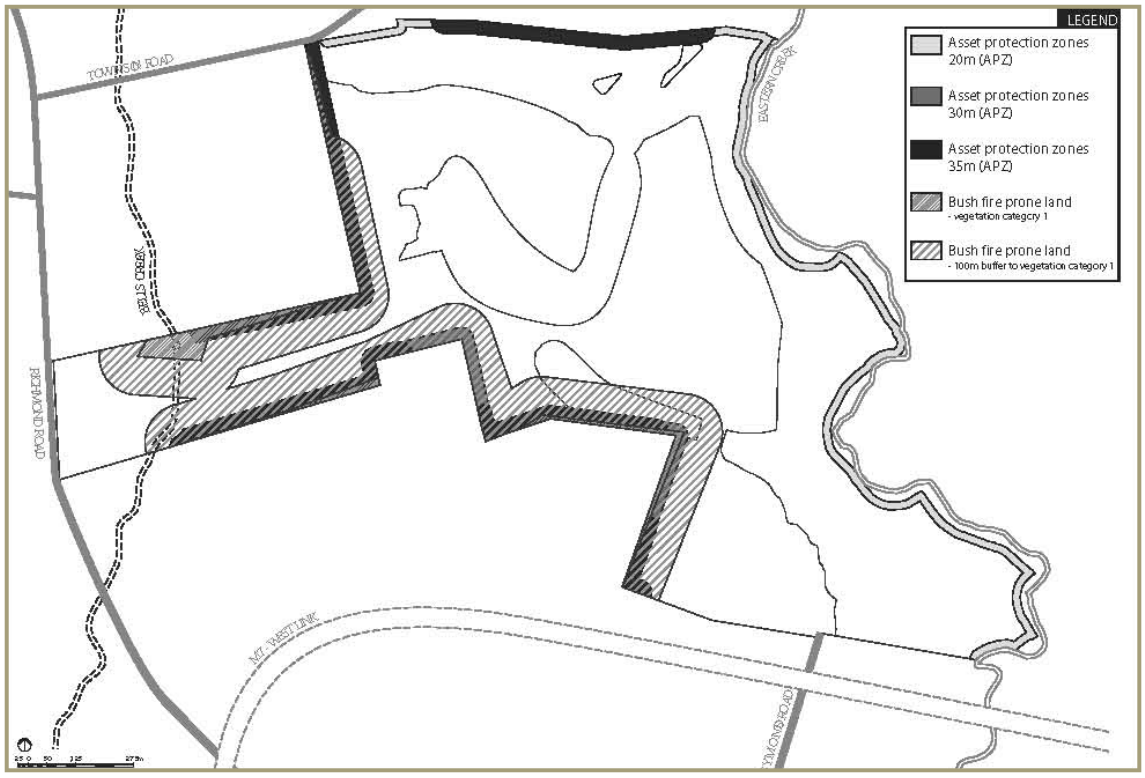


Figure 2.5 Asset protection zones

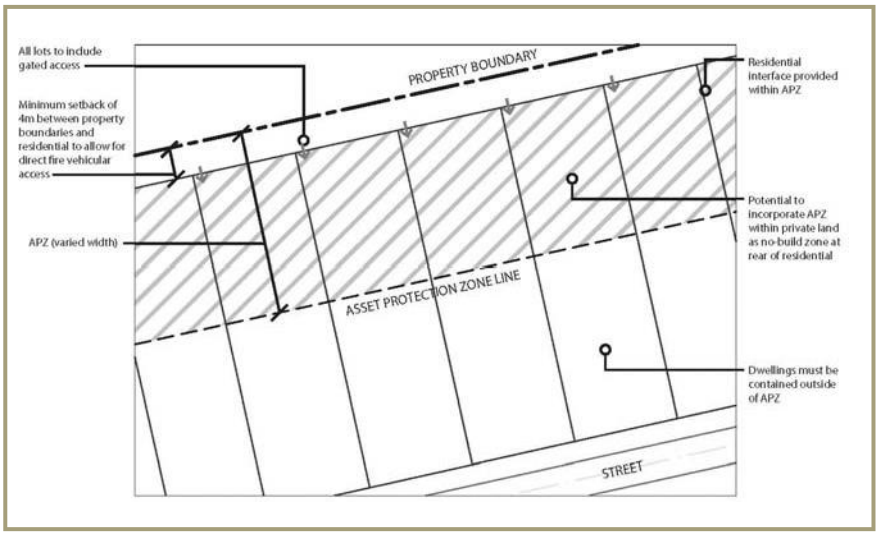


Figure 2.6 Residential / APZ interface (option 1)

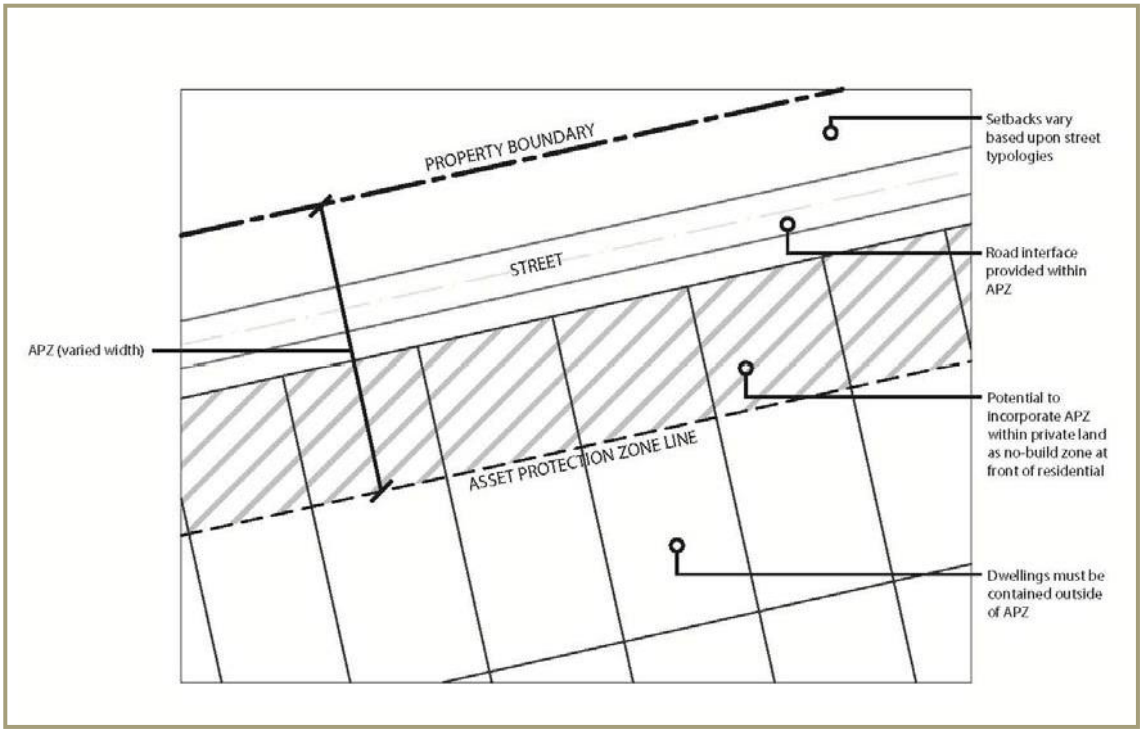


Figure 2.7 Residential / APZ interface (option 2)

2.2 Access and movement

This section of Part L outlines the objectives and development controls for the establishment of the street, pedestrian and cycle networks and public transport nodes within the site.

2.2.1 Street network

- **Objectives**

  (a) To provide an interconnected network of streets that gives safe, convenient and legible access within and beyond the site

  (b) To ensure that the hierarchy of the streets is clearly discernible through variations in carriageway width, on-street parking, incorporation of water sensitive urban design measures, street tree planting and pedestrian amenities

  (c) To ensure that the layout of streets allows for development to front streets, parks and the golf course, and encourages surveillance around local parks and other public spaces by adjoining dwellings.

- **Controls**

  (a) The internal public street network is to comprise residential collector streets, local streets and access streets provided generally in accordance with the street hierarchy illustrated at Figure 2.8

(b) All streets are to be designed in accordance with the minimum requirements set out in Council's Engineering Guide for Development. Council's current design standards for residential collector streets, local streets and access streets are illustrated in the following sections

(c) Alternative designs that preserve the functional objectives and requirements of Council's current design standards may be considered for implementation by Council where appropriate. Typical sections and plans of possible alternative designs are illustrated in the following sections. Alternative designs will only be considered by Council on a case by case basis

(d) Street reservations should have the potential to accommodate landscaping and water sensitive urban design measures where appropriate

(e) All road traffic noise levels should be designed in accordance with the Environmental Noise Management Manual and the NSW Road Noise Policy 2011

(f) All services within street reservations are to be designed and located in an integrated manner to avoid conflict with landscape and street tree planting

(g) Any DA proposing the positioning of trees within the road carriageway is to be accompanied by:

  (i) Details relating to services provision (e.g. the location and design of street lighting, the impact on the manoeuvrability of garbage trucks) and location of future driveway accesses

  (ii) A Road Safety Audit prepared in accordance with the RMS Guidelines

(h) Design measures, such as physical barriers, landscaping and signage, are required where threshold treatment is proposed to a public road, so as to prevent pedestrians mistaking them for pedestrian crossings. Any such proposed design measures are to meet the requirements of the RMS Technical Direction TDT 2001/04a. Any proposed threshold treatments need to be approved by Council via the Local Traffic Committee

(i) Access to small clusters of residential allotments may be provided via shared driveway or 'mews' arrangements. Where this is the case, the shared driveways/mews are to be owned and maintained by a community/resident association or the like. Where a shared driveway is proposed via a right of carriageway over private allotments (as opposed to the provision of a separate private allotment for the road), the subject shared driveway is to service no more than 3 allotments.

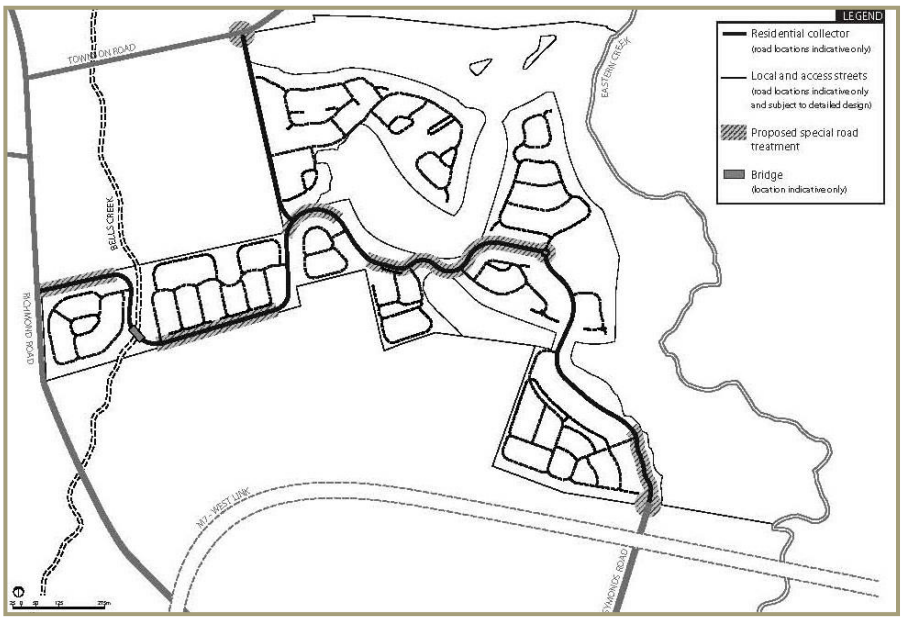


Figure 2.8 Street hierarchy plan

2.2.2 Residential collector

(a) The residential collector (main access road) will link the site

(b) The residential collector is to be designed in accordance with Council's current design standards for collector streets as illustrated at Figure 2.9

(c) Alternative design solutions that preserve the functional objectives of Council's current residential collector road standard may be considered by Council on a case by case basis. These locations include the main site entry points, around the ridge top zone and near the Clubhouse Precinct

(d) The alternative residential collector road designs that may be considered by Council include:

  (i) A widening of the minimum road reserve from 18m to 19.3m or more to accommodate a wider landscaped zone (Figure 2.10)

  (ii) A split carriageway to allow for a central landscaped median strip (Figures 2.11 and 2.12)

(e) Where a split carriageway is used, no direct access to lots may be provided (Figure 2.13). This is only applicable where the split carriageway is divided by a wide, landscaped median

(f) All split carriageways are to be designed to ensure that an emergency vehicle may pass safely if the split carriageway is blocked

(g) An indicative streetscape plan illustrating potential road and threshold treatments is shown at Figure 2.14

(h) Golf course crossing points are to be designed generally in accordance with Figures 2.15 and 2.16.

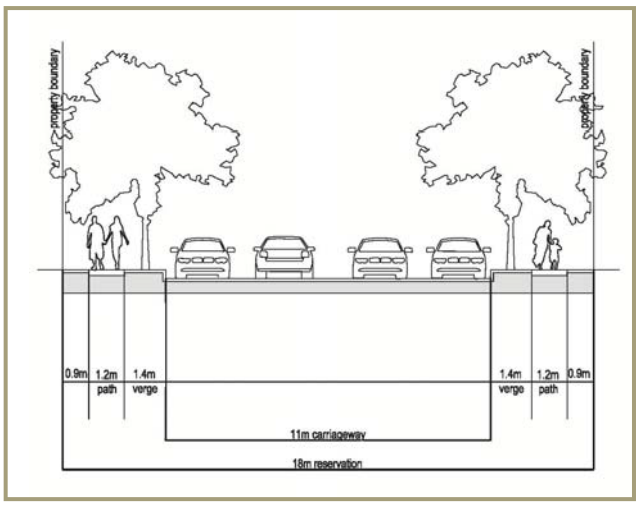


Figure 2.9 Current Council design standard for residential collector street (typical section)

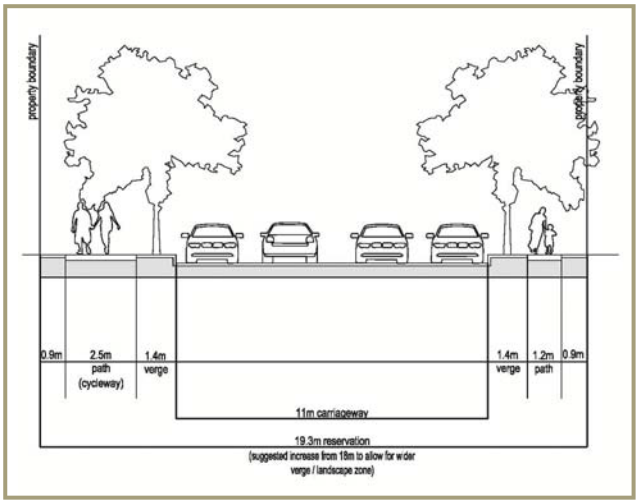


Figure 2.10 Residential collector street with wider road reserve (typical section)

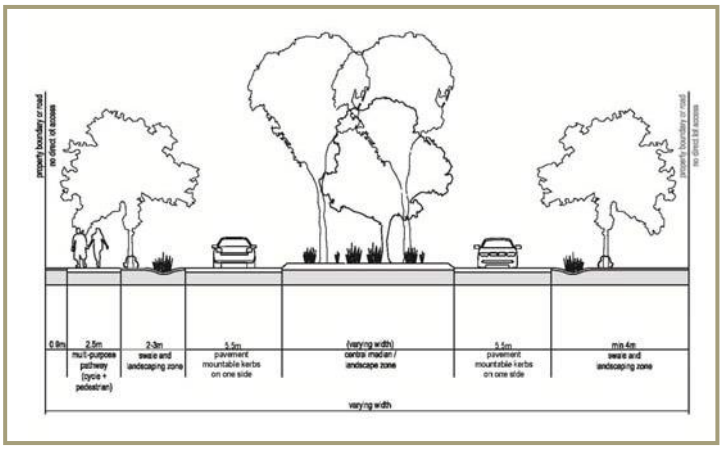


Figure 2.11 Residential collector incorporating split carriageway (typical section)

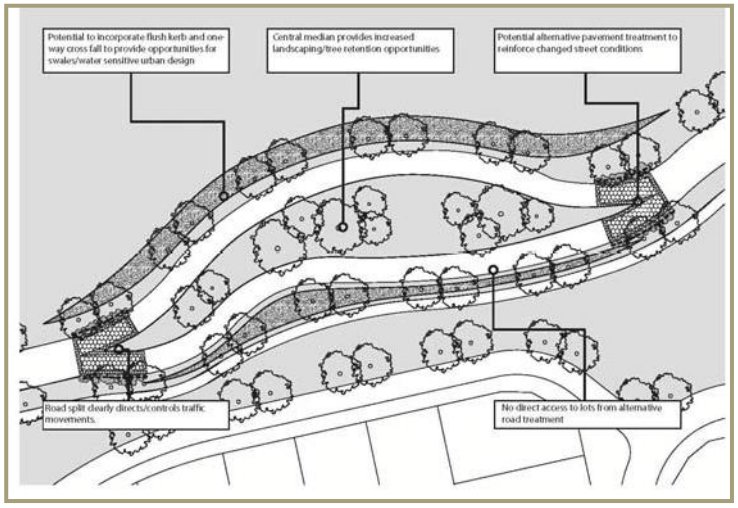


Figure 2.12 Residential collector incorporating split carriageway (typical plan)

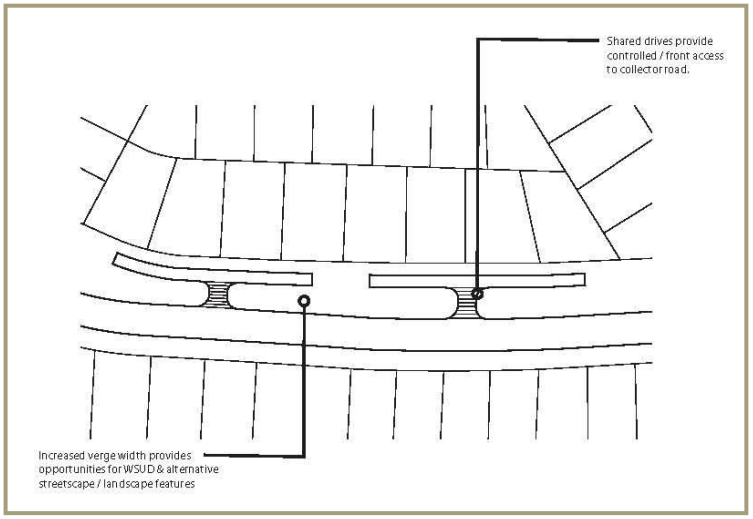


Figure 2.13 Potential private shared driveway / community title road treatment along collector roads

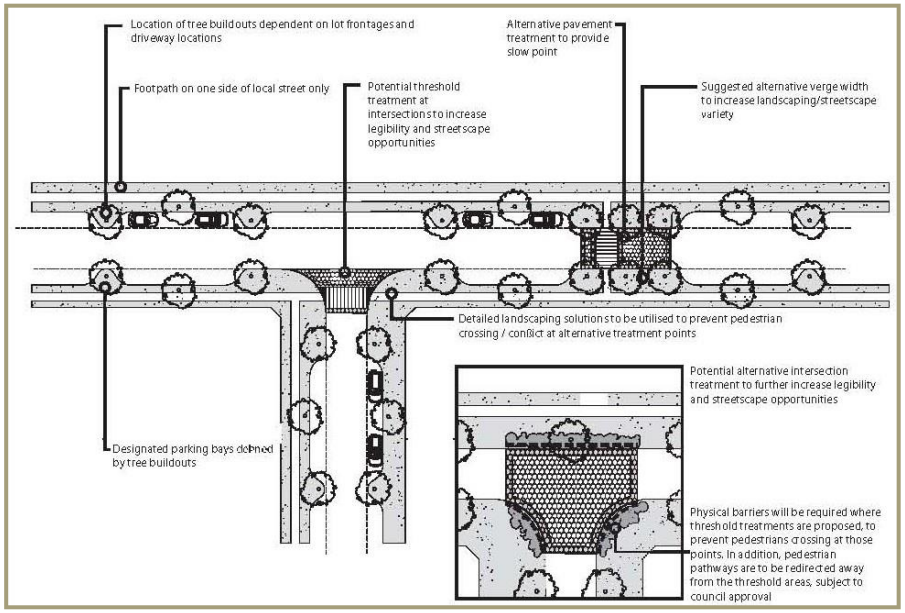


Figure 2.14 Indicative streetscape plan

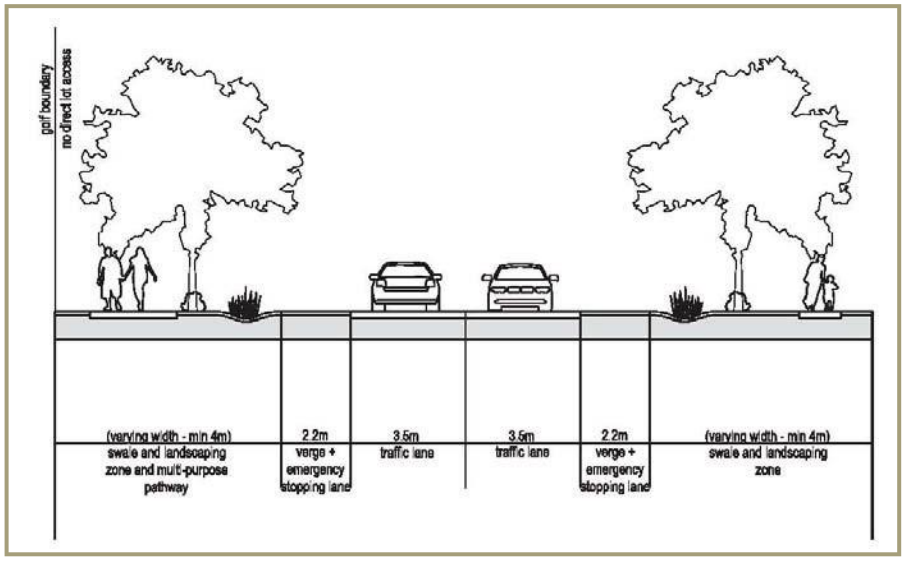


Figure 2.15 Golf crossing of street (typical section)

Note: The above road configuration is only suitable for roads through the golf course section of the site. It is not suitable if any on-street parking or access into residential properties is required.

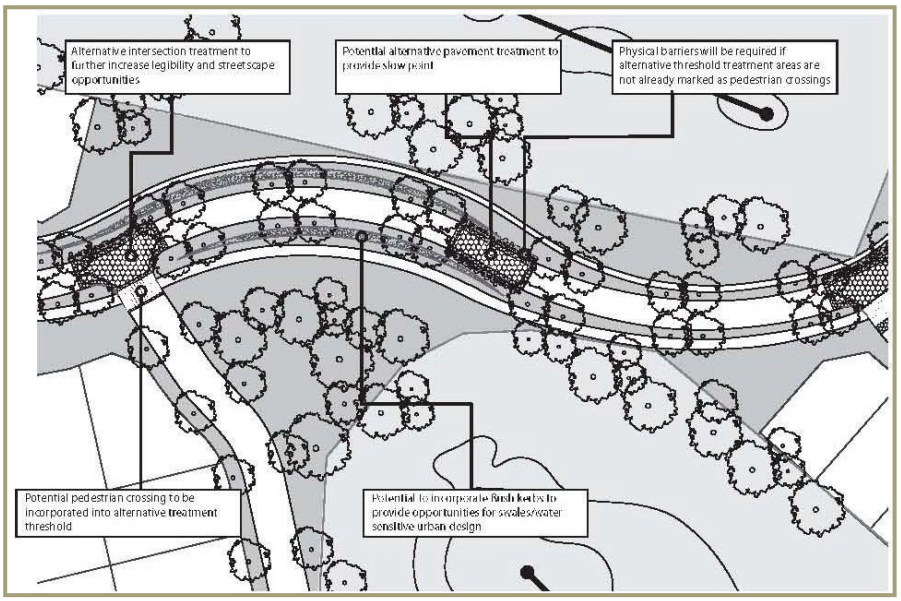


Figure 2.16 Golf crossing of street (typical plan)

- **Local streets**

  (a) Local streets will provide circulation and access within the residential development areas

  (b) Local streets are to be designed in accordance with Council's current design standards for local streets as illustrated at Figure 2.17

  (c) Alternative design solutions that preserve the functional objectives of Council's current local street design standard may be considered to allow a widening of the minimum road reserve to accommodate designated parking bays with on-street trees (within the footpath) on both sides.

- **Access streets and culs-de-sac**

  (a) Access streets are to provide local residential access to a maximum of 8 dwellings and serve a shared vehicular-pedestrian-cyclist use

  (b) The shorter road length and narrower road width associated with access streets is intended to encourage a safe, low vehicle speed environment in which the residential function is dominant

  (c) Access streets are to be designed in accordance with Council's current design standards for access streets as illustrated at Figure 2.18

  (d) Alternative design solutions that preserve the functional objectives of Council's current access street standard may be considered to incorporate water sensitive urban design elements as illustrated at Figure 2.19

  (e) Culs-de-sac are to be designed in accordance with Council's current design standards as illustrated at Figure 2.20

(f) The use of culs-de-sac is to be minimised. The maximum number of dwellings to be served by a cul-de-sac is 30.

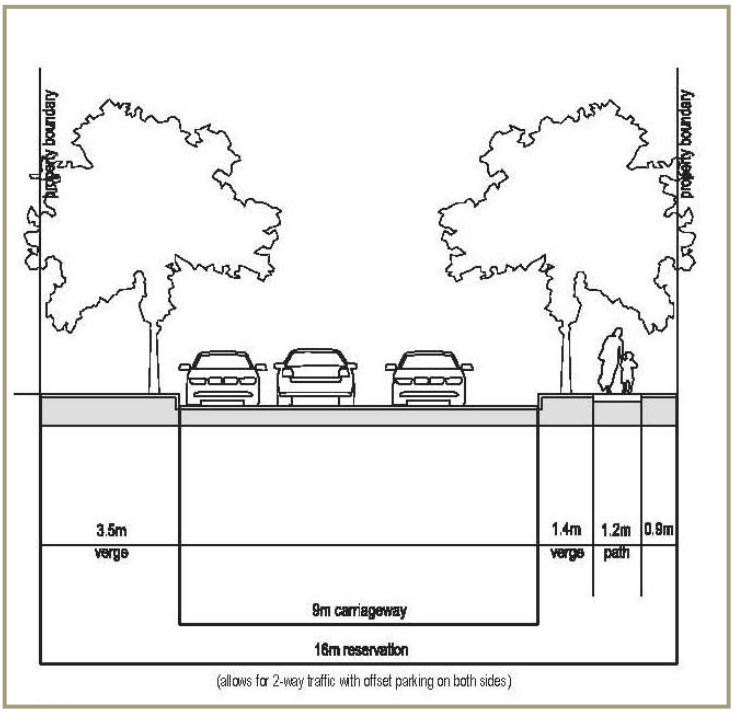


Figure 2.17 Current Council design standard for local street (typical section)

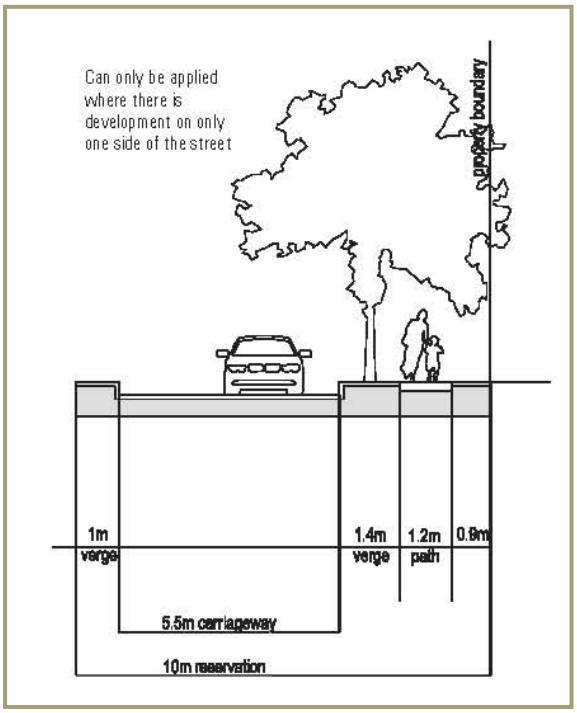


Figure 2.18 Current Council design standard for access street (typical section)

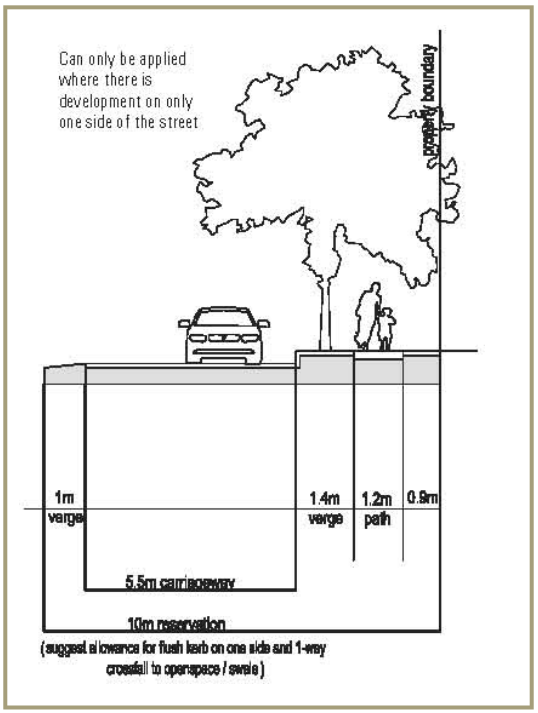


Figure 2.19 Access street incorporating water sensitive urban design (typical section)

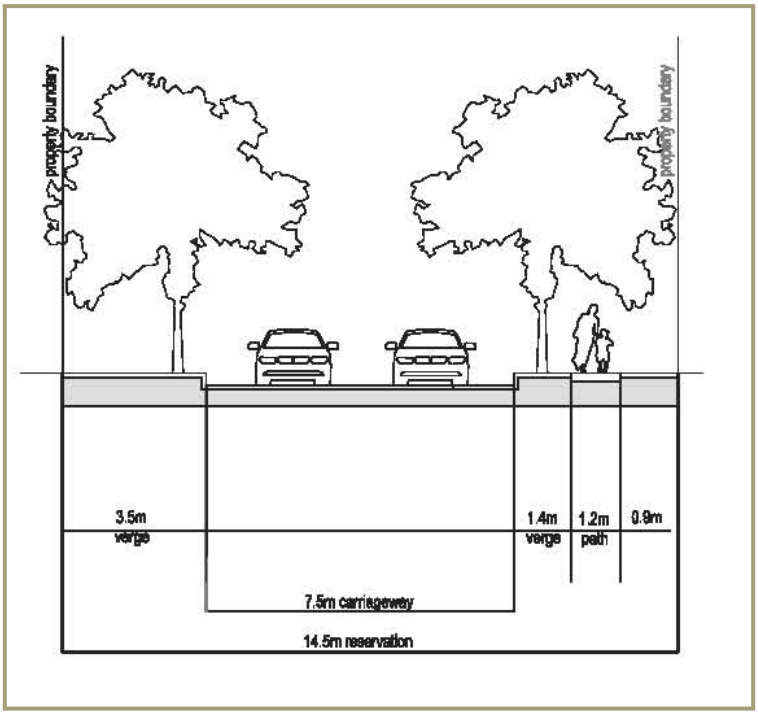


Figure 2.20 Current Council design standard for cul-de-sac (typical section)

2.2.3 Pedestrian and cycle network

- **Objectives**

  (a) To encourage walking and cycling by providing for the safe, efficient and convenient movement of pedestrians and cyclists within and beyond the site

  (b) To recognise the opportunities and constraints for pedestrian and cycle movement within the site generated by the interrelationship of the public domain with the golf course layout.

- **Controls**

  (a) Multi-purpose pathways and pedestrian/cycle connectivity is to be provided generally in accordance with the Pedestrian Connectivity and Public Transport Network Plan at Figure 2.21 and in accordance with Council's *Path Paving Policy*

  (b) At least 3,700m of multi-purpose pathways are to be provided in total

  (c) The multi-purpose pathway is to be a minimum of 2.5m wide and designed in accordance with the typical section at Figure 2.22

  (d) Designated pedestrian only pathways within public domain areas are to be generally 1.5m wide, depending on location and anticipated level of usage. A narrower width (i.e. 1.2m) will only be considered in areas where it can be demonstrated that there will be relatively little pedestrian activity

  (e) The multi-purpose pathways and designated pedestrian only pathways are to be generally constructed from concrete. However, alternate materials for pathways (such as resin stabilised crushed sandstone/granite (or similar), or concrete or hot mix/asphalted concrete) may be considered depending on location, expected traffic volumes and adjoining land uses. The use of alternate materials for pathways in public roads and reserves must be approved by Council prior to construction

  (f) Themed elements such as boardwalks, eco-pathways, and educational tracks should be utilised in appropriate locations. Size and width will vary depending on location, usage, topography and surrounding environs

  (g) Pedestrian and cycle routes and facilities in public spaces are to be safe, well lit, clearly defined, functional and accessible to all

  (h) Pedestrian and cycle pathways and pedestrian refuge islands are to be designed to be fully accessible by all in terms of access points and gradients, generally in accordance with Australian Standard 1428:1-4 and Council's *Engineering Guide for Development*

  (i) Pathways are to be constructed as part of the infrastructure works for each residential stage with detailed designs to be submitted with DAs

  (j) A multi-purpose pathway, including a bridge over Eastern Creek to the Nirimba Education Precinct, is to be provided within the site.

2.2.4 Public transport

- **Objective**

  To facilitate the use of public transport through the site by the provision of bus stops.

- **Controls**

  (a) 4 bus stops are to be provided generally in accordance with Figure 2.21. The final location of bus stops will be determined by Council's Local Traffic Committee

  (b) At least 80% of all residential lots are to be within 400m safe walking distance from an existing or proposed bus stop

  (c) The bus route through the site is to be accommodated on roads that have a minimum carriageway width of 11m.



Figure 2.21 Indicative pedestrian, cycle and public transport network plan

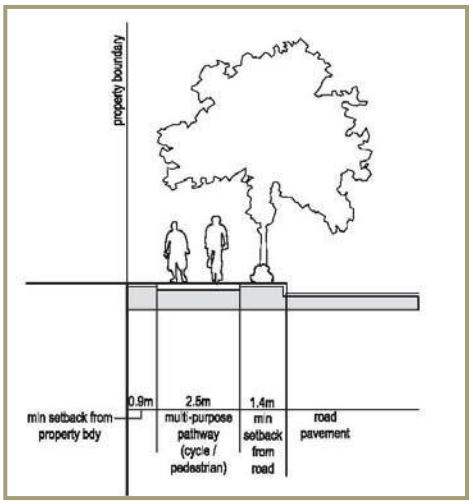


Figure 2.22 Multi-purpose pathway (typical section)

2.3 Open space and public domain

This section of Part L outlines the objectives and development controls for the provision of public open space, community parks, street tree planting, signage, street furniture, entry statements and public art.

2.3.1 Public and community parks

- **Objectives**

  (a) To provide an equitable distribution of public open space and recreation opportunities

  (b) To augment the provision of public parks with the establishment of additional community parks within the residential villages

  (c) To ensure a high quality of design and embellishment of public parks and community parks.

- **Controls**

  - **Public parks**

    (a) Public parks are to be located as focal points within each residential village and are to be generally bordered by streets on all sides with houses oriented towards them (Figure 2.23)

    (b) A minimum of 3 ha of public open space is to be provided within the development site, distributed (location and size) as shown on the Open Space Structure Plan at Figure 2.24

    (c) Public parks are to be linked by pedestrian and/or cycle routes

    (d) The design and embellishment of the public parks is to achieve their desired future character as described in Table 2.2.

  - **Community parks (i.e. open space under community ownership / control)**

    (a) Residential subdivisions are to maximise opportunities for the provision of community parks within the residential villages. Community parks are additional to the public parks shown at figure 2.24, and where provided are to be owned and maintained by the relevant home owners' association or the like

    (b) Community parks are to be designed and landscaped to provide a range of passive recreation opportunities.

  - **General**

    (a) Existing significant trees should be incorporated into public parks and community parks wherever possible

    (b) The selection of landscape species for public open space areas is to consider bush fire risk

(c) A Landscape Plan is to be submitted for each public park at the time of subdivision of the adjoining residential village. The Landscape Plan is to provide details on:

(i) Earthworks

(ii) Plant species and sizes

(iii) Utilities and services

(iv) Hard and soft landscaping treatments

(v) Entry statements

(vi) Street furniture

(vii) Play equipment

(viii) Public art

(ix) Signage.

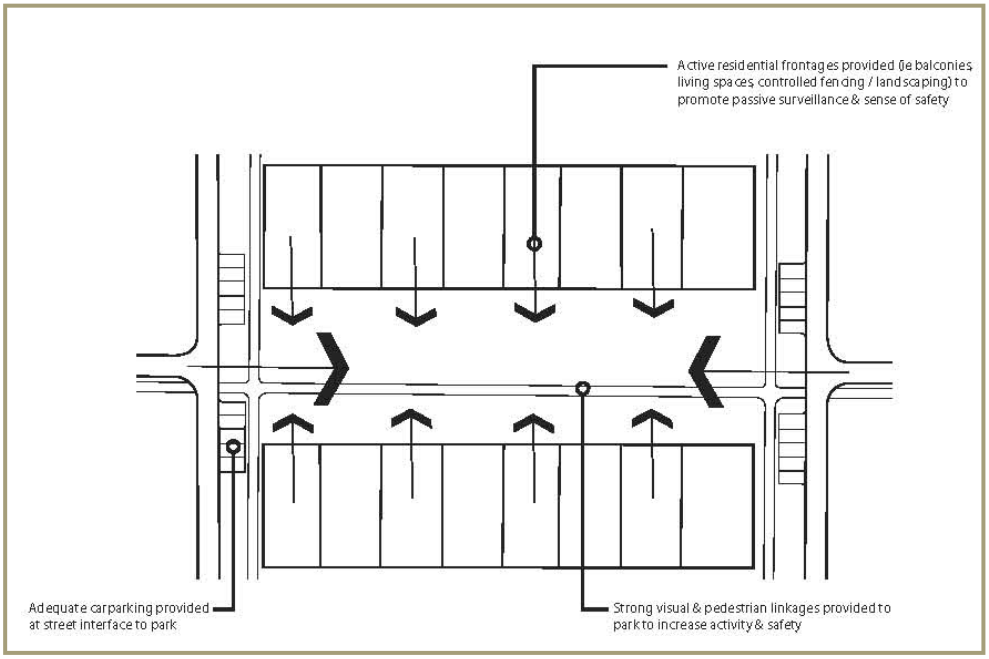


Figure 2.23 Public park and residential interface (indicative concept)

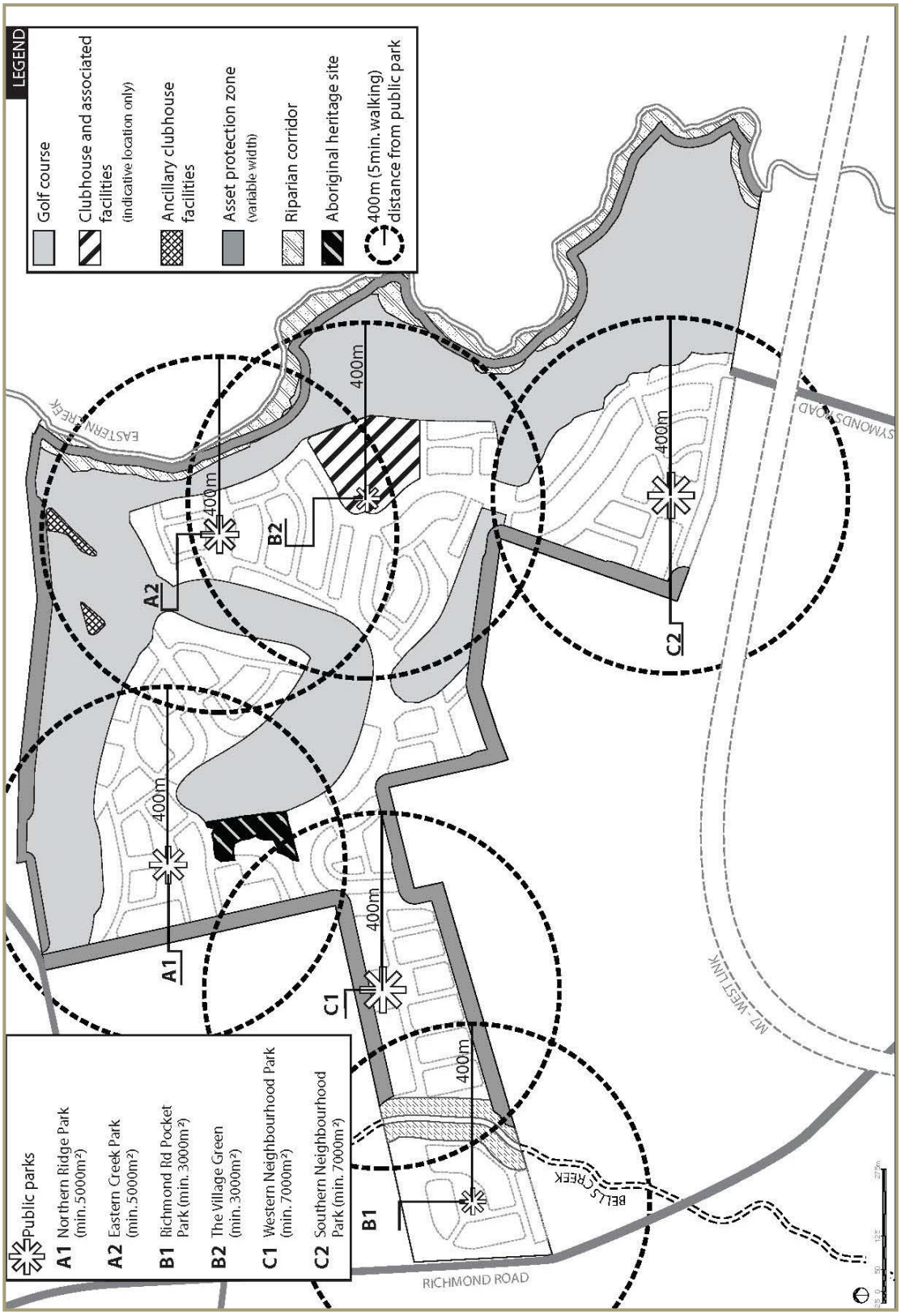


Figure 2.24 Open space structure plan

Public park	Desired future character
Western Neighbourhood Park (C1)	The 7,000sq.m Western Neighbourhood Park provides a major community focus for the western ridge residential village. The park is to be designed such that it is suitable for the entire community, but with special provision for older children for informal games and sporting activities, and spaces suitable to kick a ball. The park is linked to the Asset Protection Zone. A multi-purpose pathway allows linkages to the Bells Creek riparian zone, creating a large area suitable for activities such as walking and jogging. The park is to contain a wider range of amenities and facilities than other parks, including seating, shelters and shade, water drinking fountains, lighting, BBQs, play equipment, tennis courts, and the like.
Southern Neighbourhood Park (C2)	The 7,000sq.m Southern Neighbourhood Park provides the major community focus for the southern residential village. The park is to be relatively flat and suitable for ball games or other sporting activities. The park is to contain amenities similar to those in the Western Neighbourhood Park and is to be easily accessible by pedestrian and cyclists.
Northern Ridge Park (A1)	The 5,000sq.m Northern Ridge Park is located in the ridge zone of the site and is to provide a focus for the northern residential village. The park is to be located to ensure retention of existing significant trees and Grevillea juniperina where possible. This park is to assist in the creation of a 'stepping stone' effect between stands of native vegetation. The park is to have a large area suitable for the entire community but with special provision of safe and stimulating playground opportunities for young children. The park will generally have good vistas in all directions and will provide opportunities for picnic areas, passive recreation and walking. The park is to be furnished with play equipment, water drinking fountains, shade, fencing, benches, paved areas, pathways and landscape treatment.
Eastern Creek Park (A2)	The 5,000sq.m Eastern Creek Park is located in the north-eastern residential village. The park is to be located to maintain existing well-established vegetation and is to be designed to be suitable for a range of passive recreation uses. Like the Northern Ridge Park, the park is to be furnished with play equipment, water drinking fountains, shade, fencing, benches, paved areas, pathways and landscape treatment.
Richmond Road Pocket Park (B1)	The 3,000sq.m Richmond Road Pocket Park is located near the main entrance to the site on Richmond Road. The park is to be suitable for passive recreation, walking, relaxing and family activities, such as picnics and barbecues. The park is to be suitably embellished to include seating, shelter, landscaping and play equipment.

The Village Green (B2)	The 3,000sq.m Village Green is located adjacent to the Clubhouse Precinct. The Village Green is to provide an open space area suitable for group outdoor social and cultural events and spillover activities from the Recreational Facilities Complex. The Village Green will act as a central gathering/meeting place for the community and enhance the identity/sense of place of the residential area. The Village Green is to be designed to contain a barbecue area, playground, seating and paving and more formal landscaping.

Table 2.2 Desired future character of public parks

2.3.2 Street tree planting

- **Objective**

  To ensure that high quality street planting is provided throughout the Release Area.

- **Controls**

  (a) Council has adopted a policy of not allowing the planting of trees in the road carriageway.

  (b) Street planting in the footpath area is to:

  (i) Be consistently used to distinguish between public and private spaces and between different classes of street within the street hierarchy

  (ii) Minimise risk to utilities and services

  (iii) Be durable and suited to the street environment and, wherever practicable, include endemic species

  (iv) Maintain adequate lines of sight for vehicles and pedestrians, especially around driveways and street corners

  (v) Provide appropriate shade

  (vi) Provide an attractive and interesting landscape character and clearly define public and private areas, without blocking the potential for street surveillance.

2.3.3 Signage, street furniture and lighting

- **Objective**

  To ensure a high quality, functional, safe, legible and visually attractive public domain.

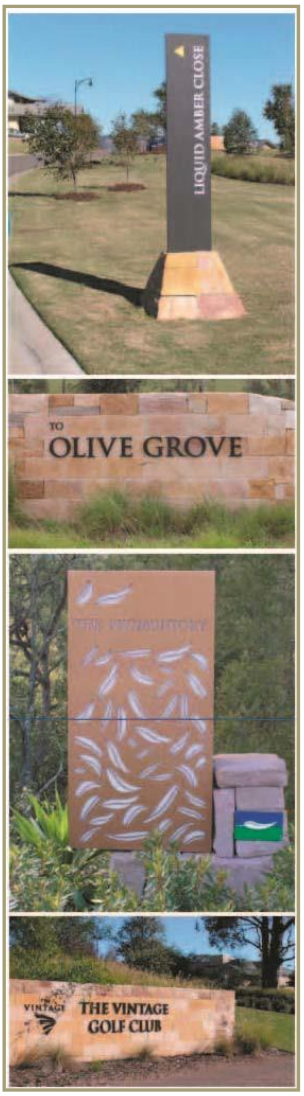


Figure 2.25 Indicative examples of signage

- **Controls**

(a) Street furniture is to be incorporated into the design of public and community parks and should include seating and shade structures, drinking fountains, street lighting, street and information signs, planter boxes, feature fencing and the like (Figure 2.25)

(b) Signage, street furniture and lighting is to be:

(i) Designed to reinforce the distinct identity of the development

(ii) Coordinated in design and style

(iii) Located so as to minimise visual clutter and obstruction of the public domain

(iv) Of a colour and construction agreed by Council

(c) Locating entry signage and the like within a public road reserve is subject to Council agreement

(d) The location and design of signage and street furniture is to be indicated on the Landscape Plan and on engineering construction drawings.

2.3.4 Entry statements / public art

- **Objective**

To help establish a unique sense of community identity and sense of place.

- **Controls**

(a) Major entry statements are to be provided at the site's main entries from Symonds, Richmond and Townson Roads

(b) Secondary entry statements are to be provided at key entry points to each of the residential villages

(c) The entry statements should consist of landscaping, built features, water features, public art, feature lighting, signage and the like

(d) Public art is to be generally located within open space areas, in particular within the Bells Creek riparian corridor, at entry statements, along the residential collector streetscapes and within the Clubhouse Precinct

(e) Unless it can be demonstrated that the public art will have a minimal maintenance burden on Council, public art is to be located on private or community titled land with a positive covenant addressing maintenance responsibilities

(f) Public art should express elements such as the local environment, site heritage, community context and the golf experience

(g) The location and detailing of any entry statements and public art is to be indicated on the Landscape Plan.

2.4 Environmental management

This section outlines the objectives and development controls relating to water cycle management, flood prone land, soils and salinity, tree retention and contamination.

2.4.1 Water cycle management

All development shall comply with the controls provided in Blacktown DCP 2015 Part J Water Sensitive Urban Design and Integrated Water Cycle Management.

2.4.2 Salinity management

- **Objectives**

  (a) to ensure that development will not significantly increase the salt load in existing watercourses within the site

  (b) to ensure that measures are implemented as part of the development to prevent any degradation of the existing soil and groundwater.

- **Controls**

  (a) All works are to conform with the *Western Sydney Salinity Code of Practice*, June 2003 (WSROC)

  (b) Each subdivision application is to be accompanied by a salinity report prepared by a suitably qualified consultant, reporting on the conditions of the site, the impact of the proposed subdivision on salinity, the mitigation measures that will be required during the course of construction and a requirement that the consultant signs off on the project upon completion of works

  (c) Groundwater and salinity levels should be monitored, especially in the footslopes and floodplain adjacent to bells creek and eastern creek.

2.4.3 Tree retention

- **Objective**

  To ensure the protection and enhancement of existing significant trees.

- **Controls**

  (a) A Tree Survey Plan is to be submitted with each subdivision DA

  (b) The Tree Survey Plan is to identify the location, type and condition of all existing trees, and is to indicate those trees proposed to be removed and those to be retained

  (c) Existing significant trees are to be retained wherever possible within public and community parks and within the streetscapes, in particular within the Bells Creek riparian corridor and within the ridgetop zone.

2.4.4 Contamination management

- **Objectives**

  (a) To minimise the risks to human health and the environment from the development of potentially contaminated land

(b) To ensure that potential site contamination issues are adequately addressed at the subdivision stage.

- **Controls**

(a) Potentially contaminated sites are identified at Figure 2.26

(b) A Contamination Assessment Report is required to be submitted with any subdivision DA which includes tested samples over the subject area under consideration.

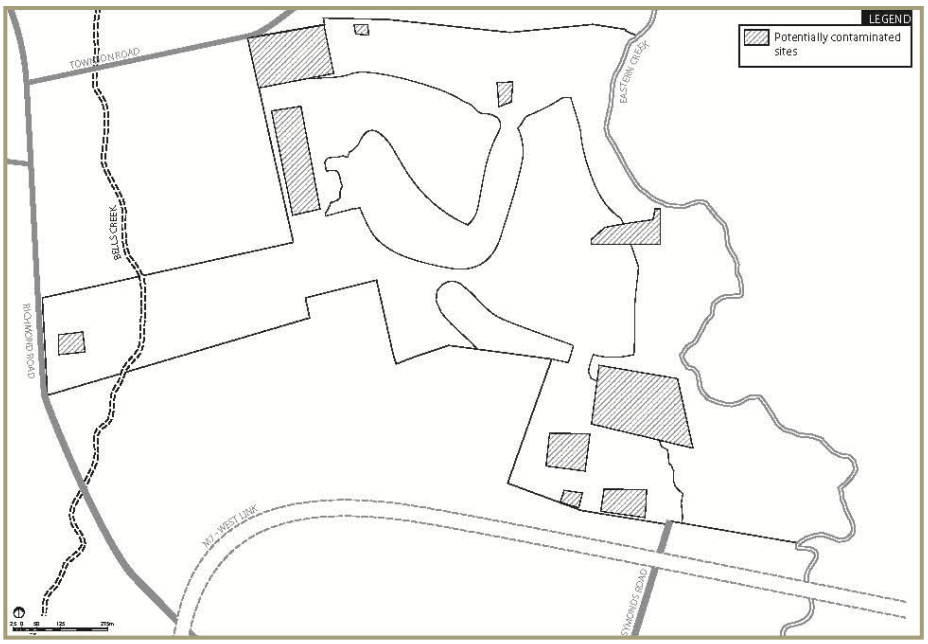


Figure 2.26 Potentially contaminated sites

2.4.5 Development on flood prone lands

- **Objective**

To minimise the potential impact of flooding on residential development.

- **Controls**

(a) No residential allotments are to be located within the Bells Creek 1 in 100 year ARI flood level as shown on Figure 2.27

(b) Roads, multi-purpose pathways and open space may extend within the 1 in 100 year ARI flood level

(c) Where a road is located within the 1 in 100 year ARI flood level, the level of the invert of the gutter is to be at or above the 1 in 100 year flood level

(d) Where a road is located within the 1 in 100 year ARI flood level, the overland flow implications of this are to be addressed as part of any subdivision DA

(e) Residential allotments located between the 1 in 100 year ARI flood level and the Probable Maximum Flood (PMF) level are to be provided with an adequate evacuation route to higher ground.

2.5 Special area controls

This section of Part L outlines the objectives and development controls relating to special areas within the site, including land in close proximity to the Bells Creek riparian corridor, the Aboriginal heritage site, the CSR quarry buffer and the Caltex oil / gas pipeline.

2.5.1 Bells Creek riparian corridor

- **Objectives**

(a) To protect and enhance the environmental qualities of Bells Creek

(b) To ensure that the development does not result in any net impact on the water quality and quantity of Bells Creek.

- **Controls**

(a) A 40m environmental riparian corridor is to be provided along either side of Bells Creek as shown at Figure 2.27. The width of the corridor is to be measured from the top of the bank

(b) Any road crossing of Bells Creek is to be provided via a clear span bridge (with piers) with a length of approximately 40m. The design of the bridge should have regard to the NSW Fisheries publication *Fish Passage Requirements for Waterway Crossing 2003*

(c) The Bells Creek riparian corridor is to be revegetated with appropriate native tree and shrub species having regard to its drainage function and vegetation management for bush fire protection

(d) A Landscape Plan for the Bells Creek corridor is to be submitted to Council as part of the residential subdivision DA for either of the adjoining residential areas. The Landscape Plan is to:

(i) Identify existing trees to be retained

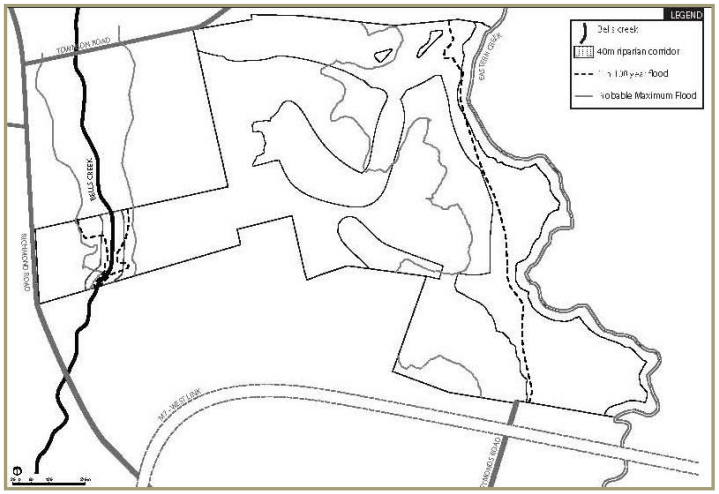
(ii) Indicate the location, type and size and all new plant species

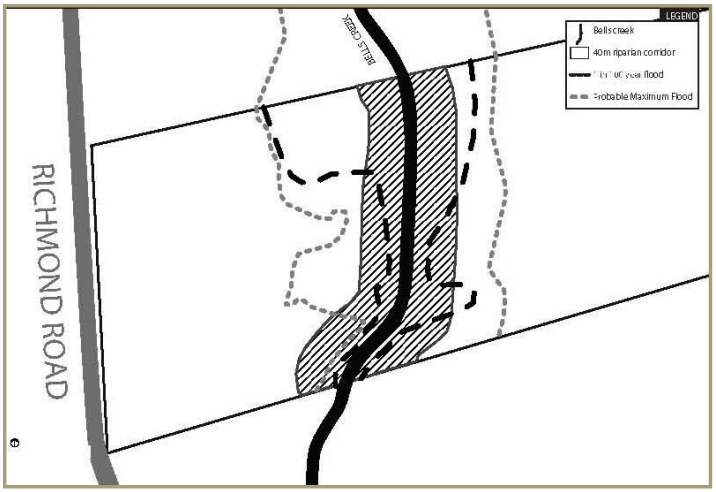
(iii) Address the ongoing management of the corridor

(e) The Bells Creek riparian corridor is to be appropriately designed and signposted to minimise public access

(f) A description of the aquatic vegetation (including trees/snags, macrophytes and algae), habitats and gravel beds in Bells Creek is required to accompany any future subdivision DA for land which adjoins the creek, together with an assessment of how these features of the creek will be impacted by future subdivision and development

(g) Future development adjoining Bells Creek is to have regard to the NSW Fisheries *Policy and Guidelines for Fish Habitat Conservation and Management 2013*.





Figures 2.27 Bells Creek riparian corridor

2.5.2 Aboriginal heritage site

The location of the Aboriginal heritage site is shown on the Urban Structure Plan at Figure 2.1. This location has been determined in accordance with the *Archaeological Assessment of Indigenous Cultural Values at Schofields NSW* dated May 2002.

- **Objectives**

  (a) To protect and enhance the significance of the Aboriginal heritage site, which is the subject of a Voluntary Conservation Agreement (VCA)

  (b) To ensure the interface between the residential areas and the Aboriginal heritage site is appropriately treated.

- **Controls**

  (a) No development on land to which this Part applies is to occur unless Council is satisfied that arrangements have been made for the ongoing protection and management of the Aboriginal heritage site

(b) All development on land covered by the VCA is to be undertaken in accordance with the VCA and Associated Plan of Management dated 2003. Das are to include an assessment of the impact of development on the implementation requirements of the VCA and Plan of Management

(c) Council shall refer any DA for development on land covered by or directly adjoining the VCA to the NSW Department of Planning and Environment for comment

(d) Residential development adjacent to the land covered by the VCA is to be designed generally in accordance with the typical sections shown at Figures 2.28 to 2.30

(e) All fencing, edge treatments and interpretive signage are to be provided in accordance with the VCA and Plan of Management

(f) The boundary between the Aboriginal heritage site and the golf course is to be delineated by an appropriately designed fence to deter access.

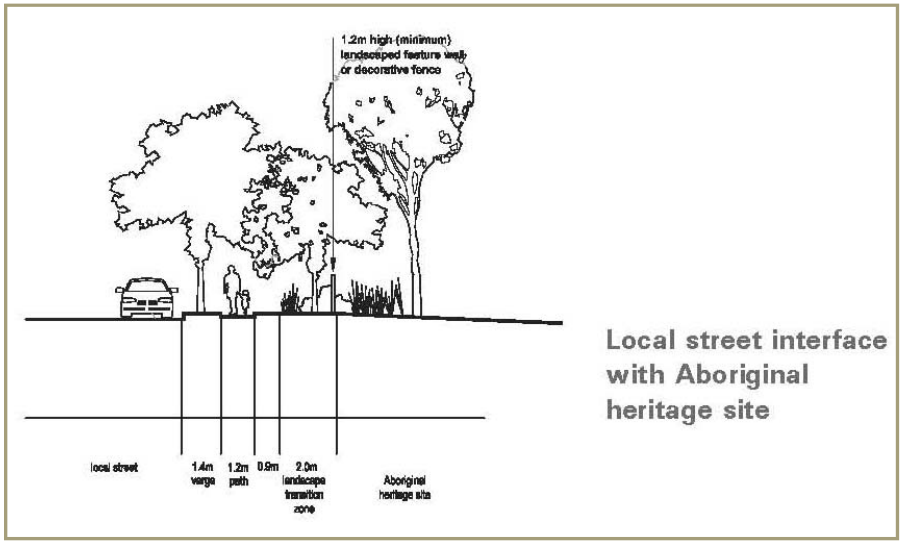


Figure 2.28 Aboriginal heritage site / local street interface (typical section)

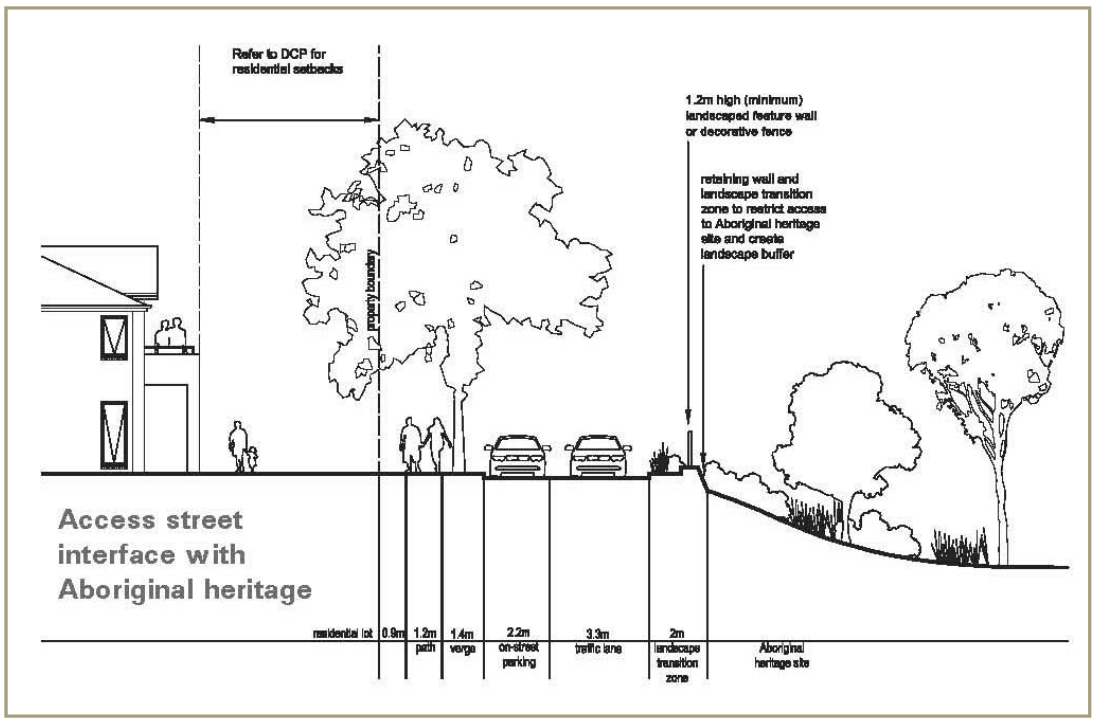


Figure 2.29 Aboriginal heritage site / access street interface (typical section)

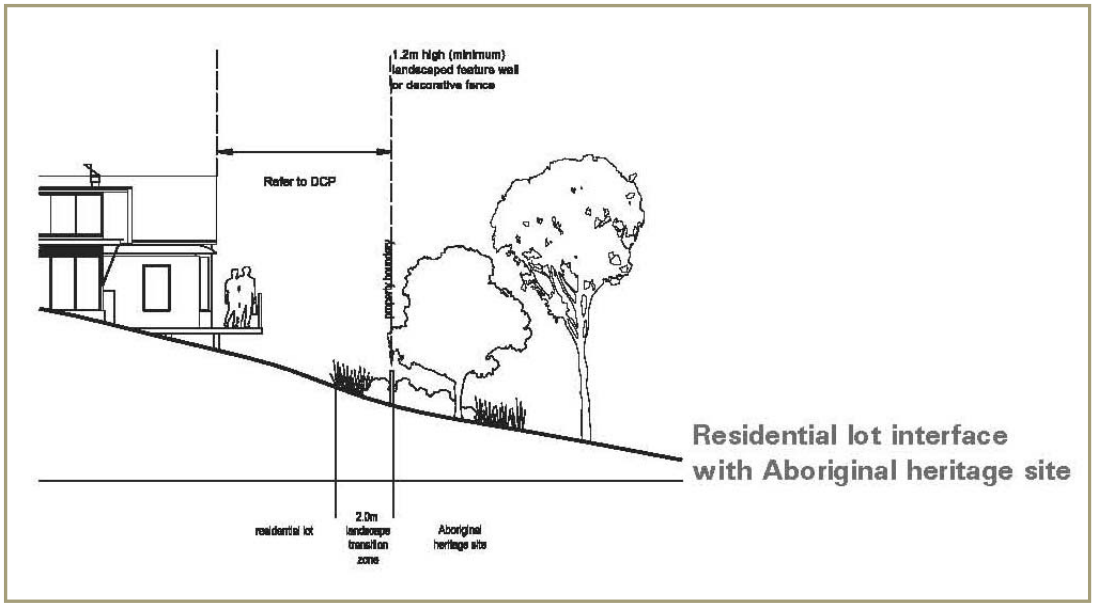


Figure 2.30 Aboriginal heritage site / residential lot interface (typical section)

2.5.3 European and Aboriginal archaeological significance

- **Objectives**

  (a) To record the European heritage significance of Luke's Farmhouse, which lies at the northern entrance to the Release Area on Figure 2.1

(b) To further investigate the Aboriginal archaeological significance of the site as a whole

(c) To ensure that information regarding the heritage significance of the site is incorporated into the redevelopment of the site.

- **Controls**

(a) An archival record is to be kept of all relics associated with Luke's Farmhouse

(b) Any subdivision DA is to be accompanied by an Aboriginal Archaeological Report supported by the comments of the local Aboriginal groups

(c) Interpretive signage, that provides information on the history and heritage significance of the site, is to be provided within the public domain areas on the site. Where possible, such signage should be provided in close proximity to the site of any relics or remains that have been uncovered

(d) A monument is to be provided in a prominent public space on the site, in recognition of the first Aboriginal land grants to Colebee and Nurragingy.

2.5.4 CSR quarry buffer

The CSR quarry buffer is shown on the Urban Structure Plan at Figure 2.1.

- **Objective**

To ensure an appropriate buffer is maintained between residential development and the CSR quarry to the north.

- **Controls**

(a) an Agreement has been entered into between Medallist Developments and CSR that outlines CSR's right to continue its extraction operations within the Office of Environment and Heritage licence requirements and that, if Medallist seeks to develop in areas that are affected by the CSR site, it must implement mitigation measures to ensure that CSR stays within its licensing requirements in regard to impacts on nearby residents. Subdivision in the Northern Residential Village (within 150m of the northern boundary of the Stonecutters Ridge) is to be consistent with this Agreement

(b) Access to Townson Road must be designed to minimise conflict with quarry traffic.

2.5.5 Caltex oil / gas pipeline

The Caltex oil / gas pipeline is shown on the Urban Structure Plan at Figure 2.1.

- **Objective**

  To ensure that any works within the Caltex oil / gas pipeline easement that may be required in association with the future development of the site do not impact on the structural stability, operation or maintenance of the oil / gas pipeline.

- **Controls**

  (a) Any works proposed within the Caltex oil / gas pipeline easement require Agility / Caltex approval and supervision

  (b) The design of any services that may cross the pipeline easement and any landscaping proposals are to be approved by Agility / Caltex in writing.

2.5.6 Richmond Road frontage

- **Objectives**

  (a) To provide an appropriate and visually appealing urban design response for the Richmond Road frontage

  (b) To ensure a good level of amenity is provided for any dwellings adjoining Richmond Road.

- **Controls**

  (a) Development along the Richmond Road frontage of the site is to present to Richmond Road in a manner that establishes a sense of place

  (b) The design of the main public entry from Richmond Road is to create an address and identity consistent with the character of the site as a high quality golf course lifestyle community. The Richmond Road entry statement is to incorporate a combination of landscaping, built features, water features (as appropriate), public art, feature lighting and signage

  (c) Details of the Richmond Road entry statement are to be provided on a landscape plan submitted with the relevant DA

  (d) Any DA proposing the subdivision of land within 100m of the Richmond Road site boundary is to include details relating to:

    (i) Means and location of vehicular access to any future residential allotments

    (ii) Means by which it is proposed to ensure that the visual impact of development when viewed from Richmond Road is appropriately managed

    (iii) A report prepared by a suitably qualified acoustic consultant that makes recommendations as to what, if any, acoustic treatment will be required to ensure appropriate internal acoustic amenity for future residents

(e) If it is necessary on the basis of a recommendation of the acoustic consultant that a landscaped setback be provided on the Richmond Road site frontage, the landscaped setback is to be owned / maintained by the community

(f) Any fencing proposed along or near to the Richmond Road site frontage is to be designed such that it is not visually intrusive when viewed from Richmond Road. A continuous blank expanse of unbroken wall / fencing along this frontage will not be acceptable

(g) Any DA proposing the construction of any building within 100m of the Richmond Road site boundary is to include details relating to any architectural building treatments that may be required to ensure appropriate internal acoustic amenity for future residents.

2.5.7 Weed management

- **Objective**

  To manage weeds on the site during and after construction, to prevent the spread of weeds to Bells Creek and Eastern Creek.

- **Controls**

  Subdivision DAs are to be accompanied by a Weed Management Plan that:

  (a) Identifies weed control measures during and after development

  (b) Requires land to be revegetated after disturbance or construction activities, to reduce the likelihood of weed species growing on the site

  (c) Requires any topsoil brought onto the site to be certified as being free of weeds before use.

3 Built form controls

The height of all built forms is to be in accordance with Clause 4.3 (Height of buildings) of Blacktown LEP 2015. This clause should be read in conjunction with the LEP Height of Buildings Map.

3.1 Dwelling houses (minimum 450sq.m site area)

The typical built form controls for detached dwellings are set out at Table 3.1.

Frontage (min)	12m (15m for corner lots)
Depth (min)	20m
Storeys (max)	Generally 2 storeys, however a third storey is permitted subject to demonstrating satisfactory amenity impacts such as overshadowing and privacy. The height must comply with Clause 4.3 of Blacktown LEP 2015
Front setback (min)	4.5m to building line (6m for lots >600sq.m) 5.5m to garage Outer most projections (OMPs) to 1/3 setback distance
Secondary street setback (min)	3m
Side setback (min)	0.9m
Rear setback (min)	4m
Private open space (POS) (min)	80sq.m (up to 3 bedroom dwellings) 100sq.m (for 4 bedroom+ dwellings) POS is to have a minimum width of 2.5m and one part of the POS area is to be capable of containing a rectangle of 4m x 6m which is directly accessible from the dwelling
Car parking spaces	Minimum 2 spaces per dwelling
Preferred garage location	Front or side

Table 3.1 Built form controls (detached dwellings minimum 450sq.m)

Private open space (POS) includes all non-built upon areas located behind the front building line with a dimension of at least 2.5m.

An ***outer most projection (OMP)*** may include balconies, awnings, pergolas, bay windows and the like.

3.2 Dwelling houses (330sq.m to 450sq.m site area)

Frontage (min)	10m (8m where vehicular access and garage is located at rear of lot)
Depth (min)	20m
Storeys (max)	Generally 2 storeys, however a third storey is permitted subject to demonstrating satisfactory amenity impacts such as overshadowing and privacy. The height must comply with Clause 4.3 of Blacktown LEP 2015
Front setback (min)	4m to building line (3.5m where the lot directly fronts open space) 5.5m to garage OMPs to 1/3 setback distance
Secondary street setback (min)	3m
Side setback (min)	0.9m (0m allowed for zero lot line and zipper lots)
Rear setback (min)	4m (0m for a rear or side garage)
Private open space (POS) (min)	80sq.m (up to 3 bedroom dwellings) 100sq.m (for 4 bedroom+ dwellings) POS is to have a minimum width of 2.5m and one part of the POS area is to be capable of containing a rectangle of 4m x 6m which is directly accessible from the dwelling
Car parking spaces	Min. 2 spaces per dwelling
Preferred garage location	Front, side or rear No more than one garage to be permitted, where a frontage of 10m or less is proposed

Table 3.2 Built form controls (detached dwellings minimum 330sq.m to 450sq.m)

3.3 Dual occupancy housing

The development controls within Part C shall apply for any dual occupancy housing development.

3.4 Attached dwellings and multi dwelling housing

Attached dwellings and multi dwelling housing comprise a range of products including terrace houses, townhouses, courtyard houses and the like and will be located in areas of highest amenity such as around the Clubhouse Precinct, public open space and the golf course as shown at Figure 2.3.

The built form controls for attached dwellings and multi dwelling housing are set out at Table 3.2. Additional controls are contained in Blacktown DCP 2015 Part C – Development in the Residential Zones. Where there are differences between the controls in Table 3.2 and the rest of the DCP, the controls in Table 3.2 are to prevail.

All applications are to be for subdivision and the housing product.

Frontage (min)	26m
Depth (max)	2.75 x the frontage
Storeys (max)	Generally 2 storeys, however a third storey element to the building (e.g. loft) may be permitted subject to demonstrating satisfactory amenity impacts such as overshadowing and privacy. The height of the building must comply with Clause 4.3 of Blacktown LEP 2015.
Front setback (min)	6m (4m where access / garage is located at the rear)
Secondary street setback (min)	3m
Side setback (min) between buildings within development	0m (for dwellings and rear garages)
Private open space (POS) (min)	50sq.m for 1 bedroom dwellings 60sq.m for 2 bedroom dwellings 70sq.m for 3+ bedroom dwellings The main POS is to have a min. dimension of 6m x 6m. The remaining area must have a min. dimension of 2.5m.
Car parking spaces	Min. 1 space per 1 and 2 bedroom dwellings Min. 2 spaces per 3 bedroom dwellings 1 visitor space per 2.5 dwellings (to be rounded up to the next whole number)
Garage location	Encourage rear and side locations only

Table 3.3 Built form controls for attached dwellings and multi dwelling housing

3.5 Quality streetscapes

This section of the DCP outlines objectives and development controls relating to architectural design, residential streetscapes, driveways and garages, fences and walls, and safety and surveillance.

3.5.1 Architectural design, materials and finishes

- **Objective**

  To encourage innovative contemporary designs which enhance the built form, landscape and environmental character.

- **Controls**

  (a) Building facades are to be articulated and roof form is to be varied to provide visual variety. Suitable elements for articulated appearance include verandahs, windows, awnings, eaves and wall line variation. Suitable elements for roof forms include hips, skillions, flat roofs, curved roofs, and gables

(b) Proposed dwelling colours, materials and finishes are to be from a neutral palette of colours. Bright and highly reflective colours are to be avoided

(c) Multi-coloured roof tiles are not permitted

(d) Mirror-imaging of dwelling facades is not permitted

(e) the repetition of identical housing designs in a group of dwellings will not be permitted.

Note: Additional design guidelines relating to dwelling architectural design, materials and finishes are included in the Developer Design Guidelines (DDGs) for the estate.

3.5.2 Residential streetscapes

- **Objective**

  To create attractive streetscapes.

- **Controls**

  (a) Residential streetscapes are to be designed having regard to the principles illustrated at Figure 3.3

  (b) The front elevation of dwellings are to incorporate entrances, verandahs, porches and balconies and the like to provide articulation, visual interest and to allow casual surveillance of the street

  (c) Outer most projections (omps) (e.g. Balconies, awnings, pergolas, bay windows and the like) may extend into the required front setback by up to one third of the setback distance, to create extra visual interest and enhance opportunities for social interaction

  (d) Building facades on corner sites shall address both streets and incorporate elements within the roof and wall to create an articulated appearance

  (e) Long, unarticulated facades fronting the street are not permitted

  (f) Landscape treatment is to be provided within the front setback zone to provide a clear delineation between the private and public domain

  (g) Front setback areas are to contain landscaping.

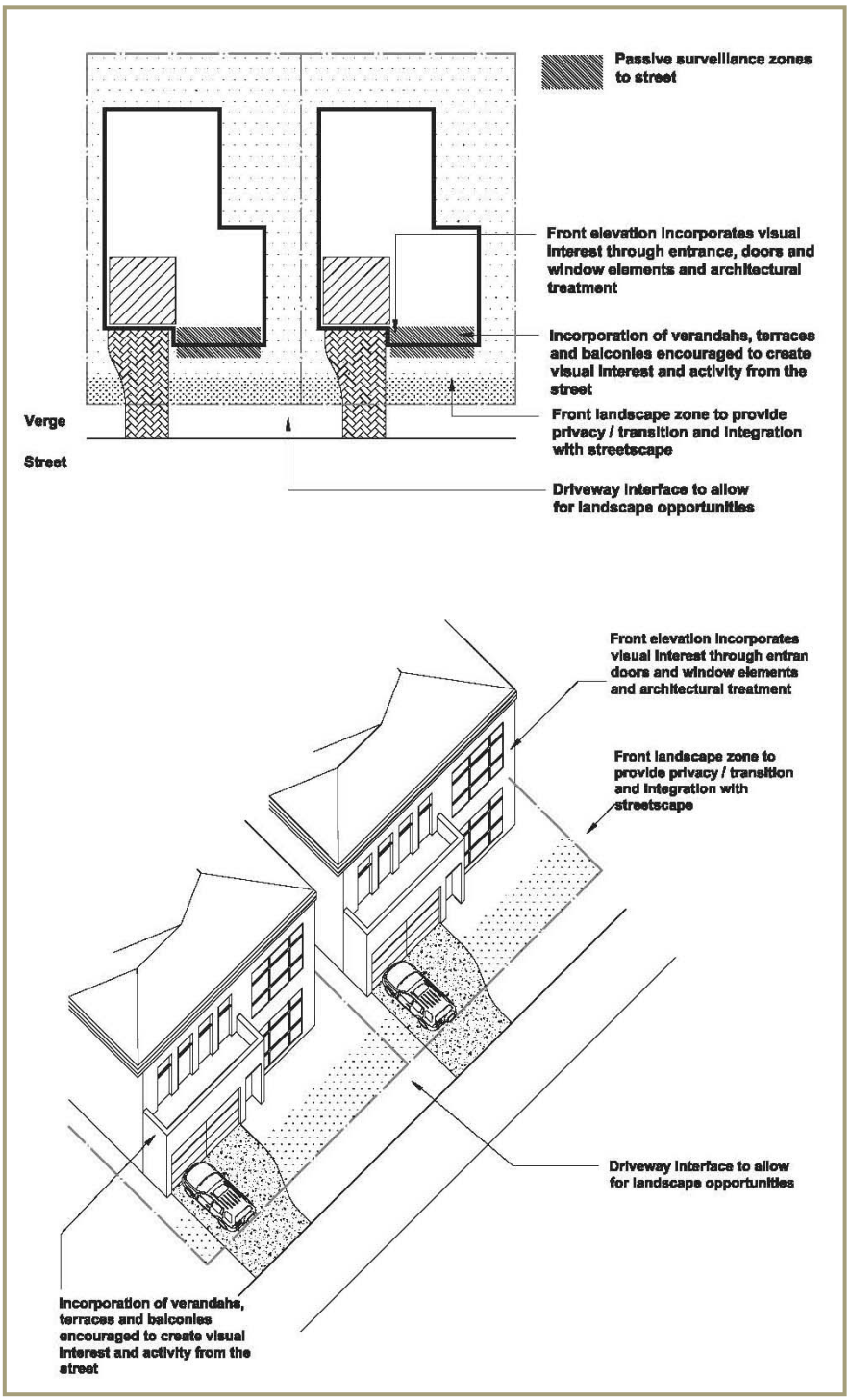


Figure 3.1 Dwelling / street interface

3.5.3 Driveways and garages

- **Objective**

  To provide a range of convenient and safe parking options which are adequate for residents and visitors, and are not visually obtrusive.

- **Controls**

  (a) Where a carport or garage entry forms part of the front facade of a dwelling, the carport or garage is to be setback a minimum of 5.5m from the front boundary to enable a car to be parked in the driveway

  (b) Carports and garages are to be treated as an important element of the dwelling façade and interface to the public domain. They are to be integrated with and complementary, in terms of design and material, with the dwelling design. Garage doors are to be visually recessed though the use of materials, colours and overhangs

  (c) The maximum width of a driveway at the property boundary is to be 4m

  (d) Where facing the street, the maximum width of a garage or carport is to be 6m per dwelling

  (e) To reduce the dominance of garages, the number of (front) garages will be limited to one where a dwelling is proposed on a lot with a frontage of 10m or less and the garage fronts the primary street.

- **Shared driveways**

  (a) Shared driveways / mews courts are to be owned and maintained by a community / resident association or the like

  (b) The maximum number of dwellings to be served from a shared driveway is 10. The width of such a driveway is to be in accordance with council's *engineering guide for development*

  (c) The maximum travelling distance from a public road to a garbage collection area within a shared driveway/mews court is to be in accordance with the requirements of Part G.

  (d) Opportunities for casual surveillance from dwellings are to be incorporated into the design of shared driveways (mews courts) and where rear access is proposed

  (e) The location of driveways is to be determined in conjunction with proposed locations of street gully pits and tree bays, to minimise any impact on available on-street parking.

3.5.4 Fences and walls

- **Objectives**

  (a) To enhance the streetscape, amenity, setting and outlook of dwellings

(b) To provide a clear distinction between private and public space and to encourage casual surveillance of the street.

- **Controls**

(a) All front fencing is to be consistent in design and style with its dwelling. On corner allotments, the front fencing style is to be continued along the secondary street frontage to at least 1m behind the building line of the dwelling (refer to figure 3.4)

(b) Front and side fencing is to have regard to the principles shown at figure 3.5

(c) The maximum height of a solid fence in front of the building line is to be 0.8m

(d) Front fences and walls are to not impede safe sight lines for traffic

(e) All boundary fencing behind the front building line (the one furthest from the front property line, where there is a staggered frontage) shall be 1.8m high

(f) Fencing that adjoins mews or rear accessways is to permit casual surveillance

(g) Any fence visible to a public place, including common property and mews, must be of a decorative finish to council's satisfaction

(h) Fencing for lots adjoining the golf course should have regard to figure 3.6

(i) Retaining walls are to be kept to a minimum to reduce earthworks. All retaining walls are to be clearly identified on plans. Use of materials that complement the natural environment, are visually appealing and are highly durable are encouraged

(j) Refer to part a of blacktown dcp 2015 for cut and fill requirements

(k) Colorbond or timber paling or lapped / capped fencing can only be used internally between dwelling lots.

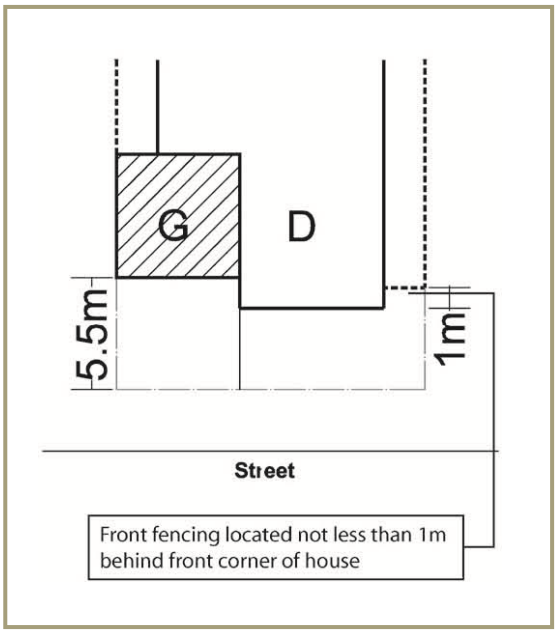


Figure 3.2 Front fencing (for corner lots only)

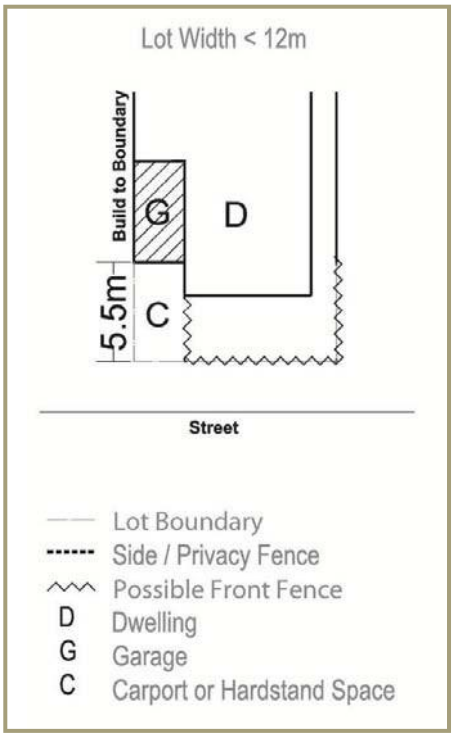


Figure 3.3 Front fencing and walls

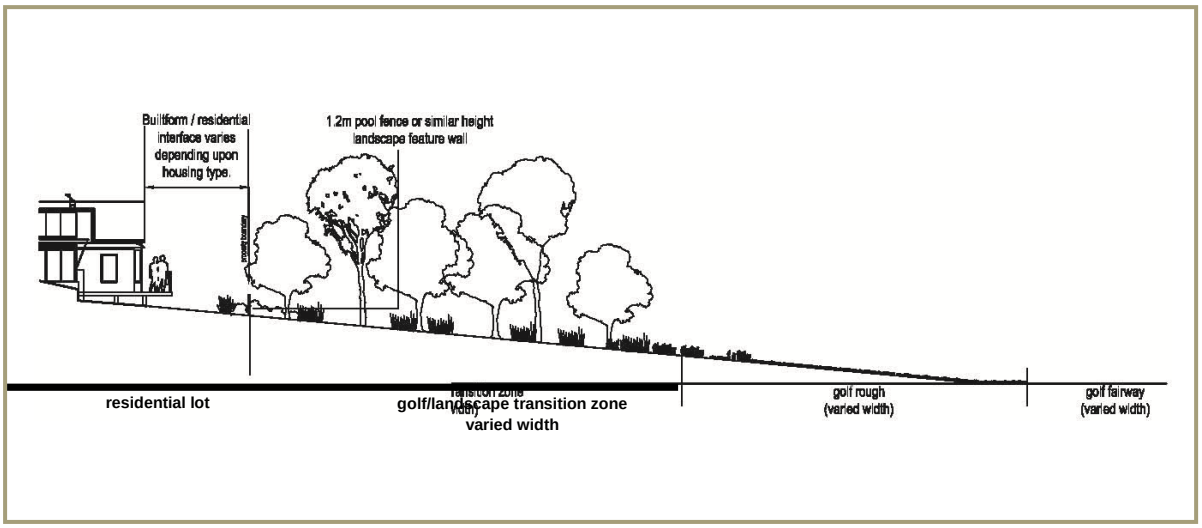


Figure 3.4 Residential lot interface with golf course

Note: Additional design guidelines relating to fences and walls are included in the Developer Design Guidelines (DDGs).

3.5.5 Safety and surveillance

- **Objectives**

  (a) To ensure that the siting and design of buildings and spaces decreases the opportunities for committing crime

  (b) To ensure that development encourages people to use streets, parks and other public places without fear of personal risk.

- **Controls**

  (a) Dwellings should be designed to overlook streets, lanes and other public or communal areas to provide casual surveillance as illustrated at figures 3.7 to 3.9 inclusive. In the case of corner lots, habitable windows are also to be oriented to overlook the side street

  (b) Use of roller shutters is not permitted on doors and windows facing the street. Any security railings must be designed to complement the architecture of the building

  (c) Developments are to avoid the creation of areas for concealment and blank walls facing the street

  (d) Pedestrian and communal areas are to have sufficient lighting to ensure a high level of safety (refer to section 2.3 open space & public domain). These areas must be designed to minimise opportunities for concealment

(e) All developments are to incorporate the principles of *crime prevention through environmental design* (cpted). When assessing applications, council must consider department of urban affairs and planning guidelines for *crime prevention and the assessment of development applications 2001.*

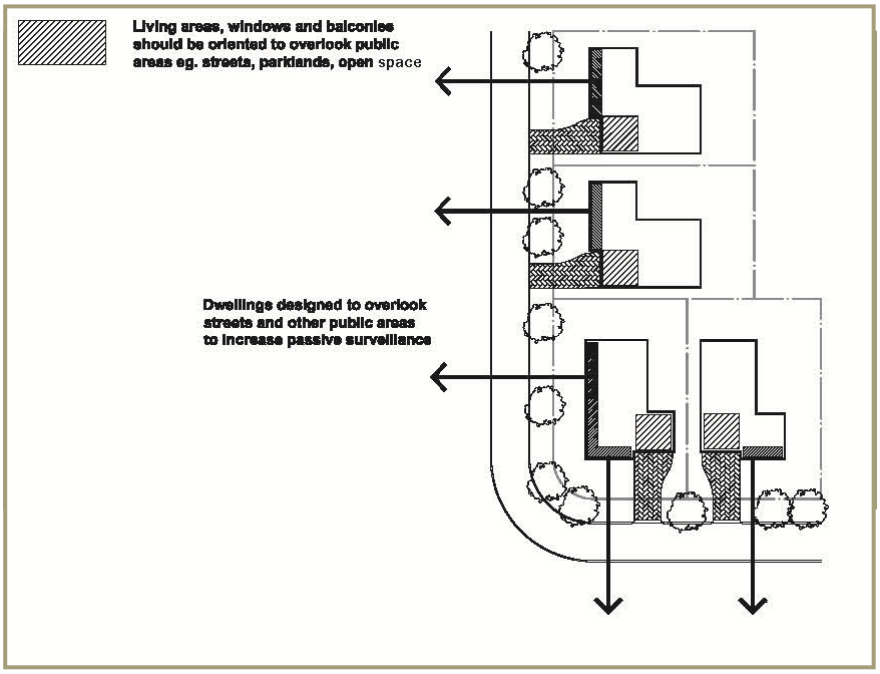


Figure 3.5 Passive surveillance of the streetscape

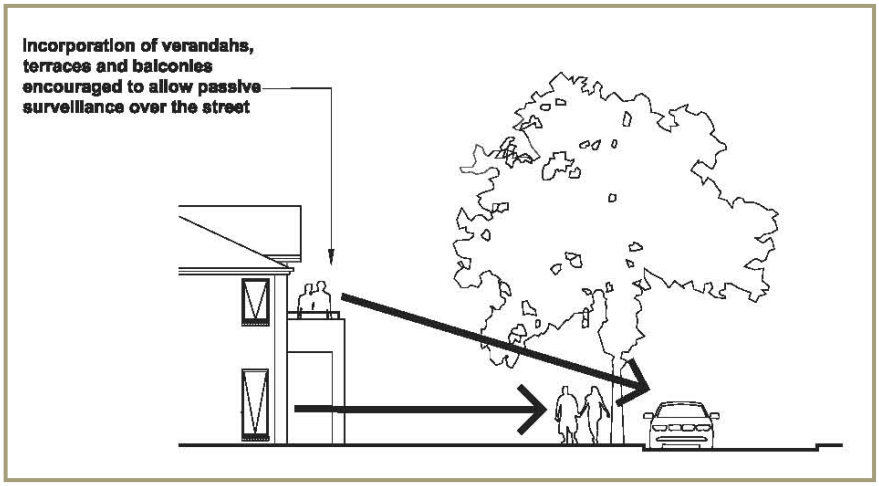


Figure 3.6 Verandahs and balconies provide overlooking of streets and parks

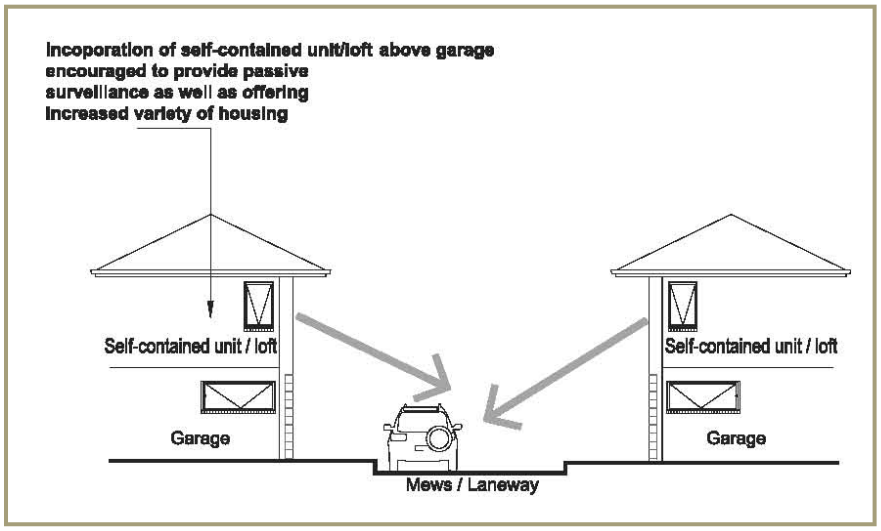


Figure 3.7 **Self-contained lofts provide passive surveillance of mews court and rear accessways**

3.6 Environmental and residential amenity

This section of the DCP outlines objectives and development controls relating to solar access, BASIX, visual and acoustic privacy, landscaping (private domain), bush fire construction standards, servicing, construction management and waste.

3.6.1 Solar access

- **Objectives**

  (a) to recognise that the golf course layout has influences on lot orientation and thus solar access for some dwellings, and to ensure that residential amenity in terms of direct solar access is considered within the broader context of the high level of amenity that can be afforded within this community in terms of views, outlook and proximity to open space

  (b) To ensure that dwellings are sited to maximise solar access to living rooms and private open space

  (c) To minimise the negative impact of overshadowing on neighbouring buildings' internal and outdoor areas.

- **Controls**

  (a) The orientation of dwellings is to be consistent with the solar access principles illustrated at figures 3.10 to 3.13 inclusive

(b) 50% of the area of a private open space (of both the proposed development and adjoining site) should receive at least 3 hours of sunlight between 9am and 3pm at the winter solstice (21 June). This requirement also applies to common open space. Furthermore, a centrally located courtyard must obtain the same proportion of solar access for it to be considered a suitable useable area. This solar access requirement may be reduced where Council is satisfied that other significant amenity is afforded to future residents (e.g. views / outlook to public open space and the golf course) and that BASIX requirements can nevertheless be met

(c) Landscaping design, species selection and eaves and overhangs are to be used to allow lower winter sun into main living areas

(d) Dwellings should also be designed to avoid overshadowing of adjacent properties and to protect sunlight access to any habitable room or private outdoor living space of adjacent buildings.

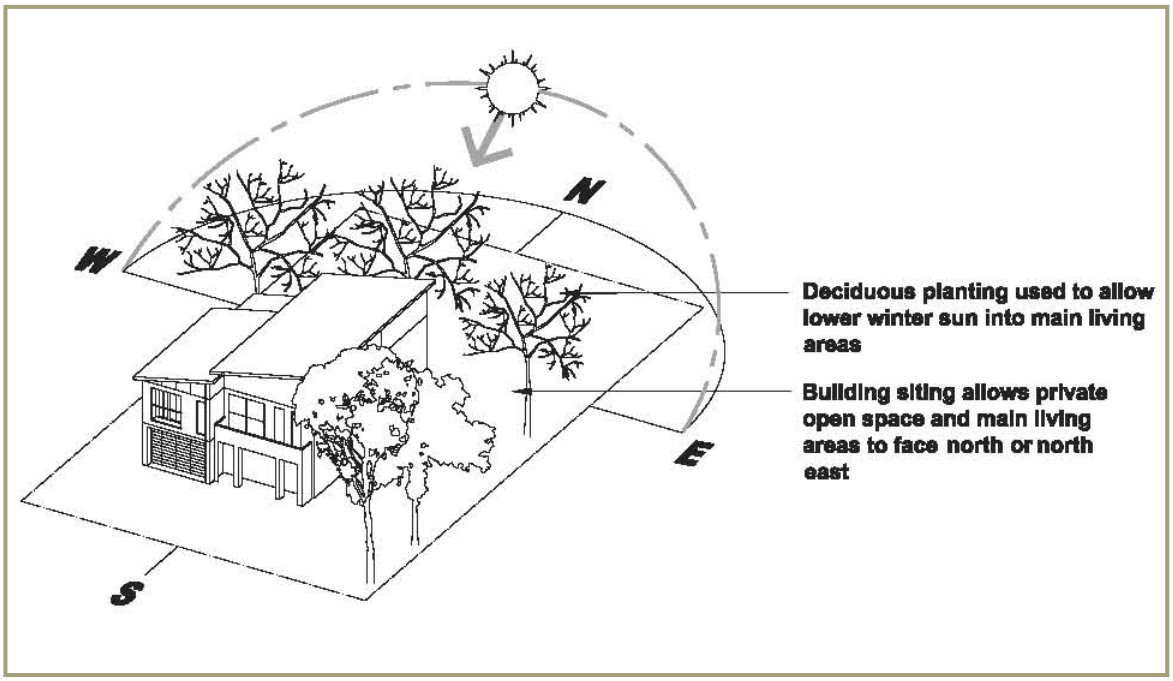


Figure 3.8 Solar access (winter)

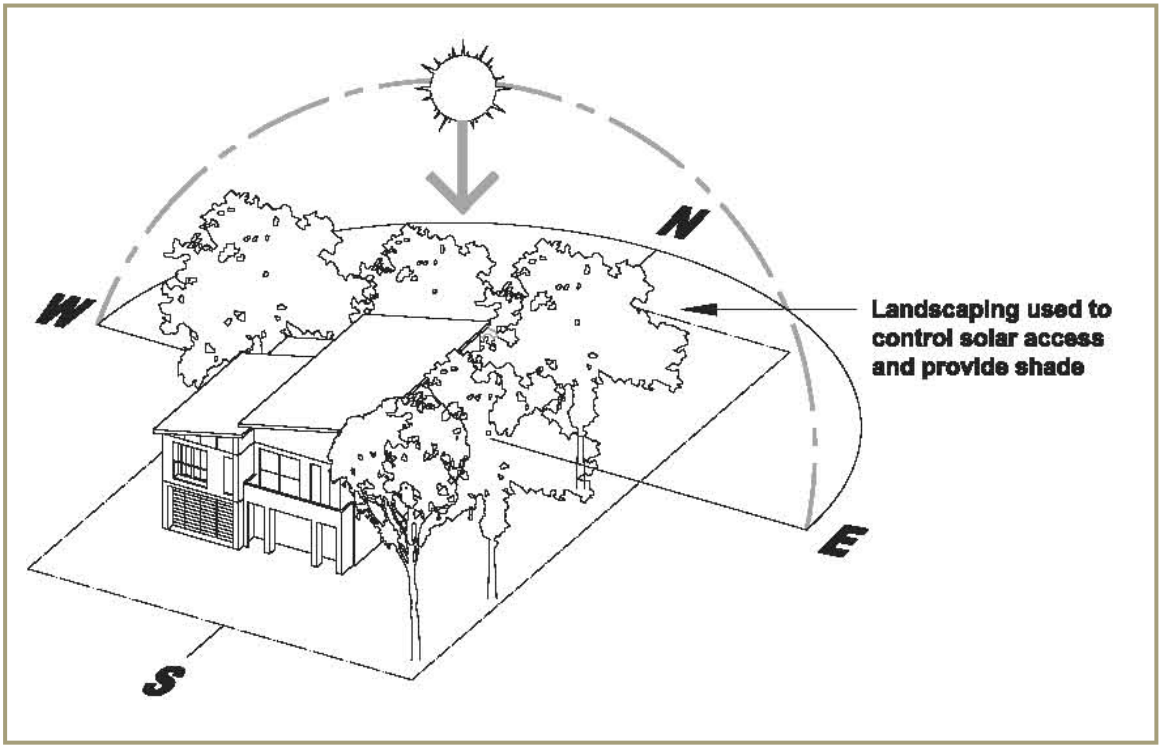


Figure 3.9 Solar access (summer)

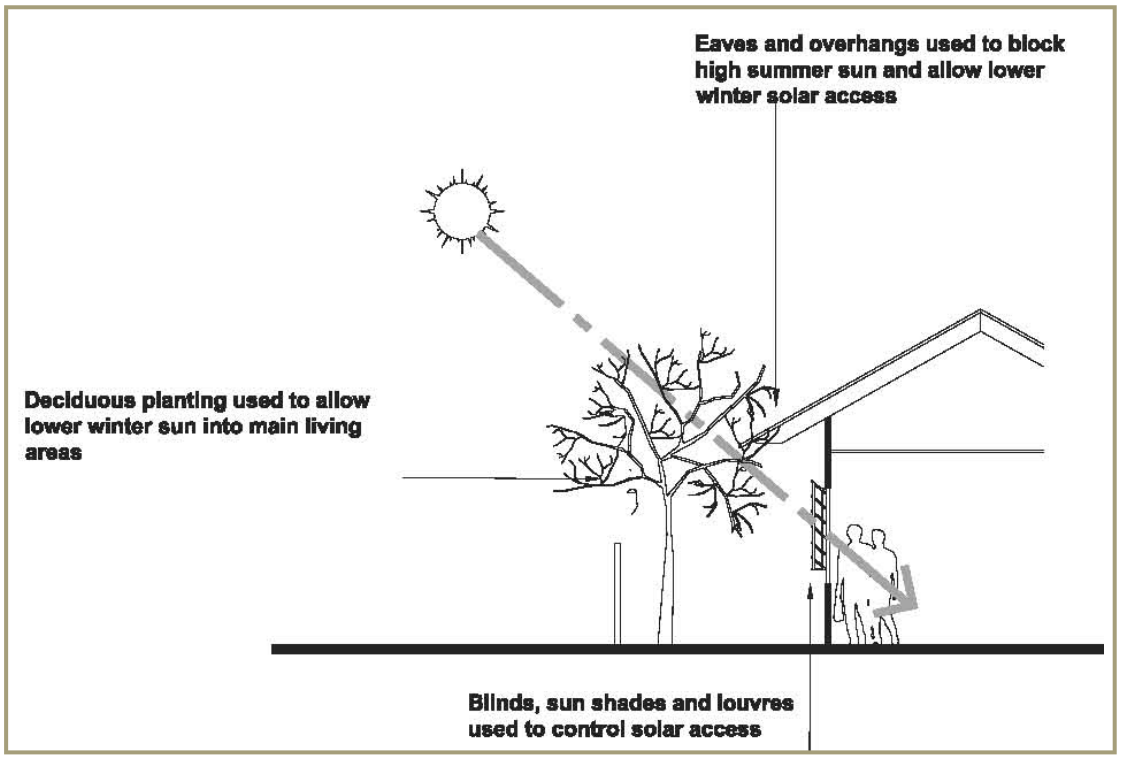


Figure 3.10 Deciduous planting allows winter sun into dwellings

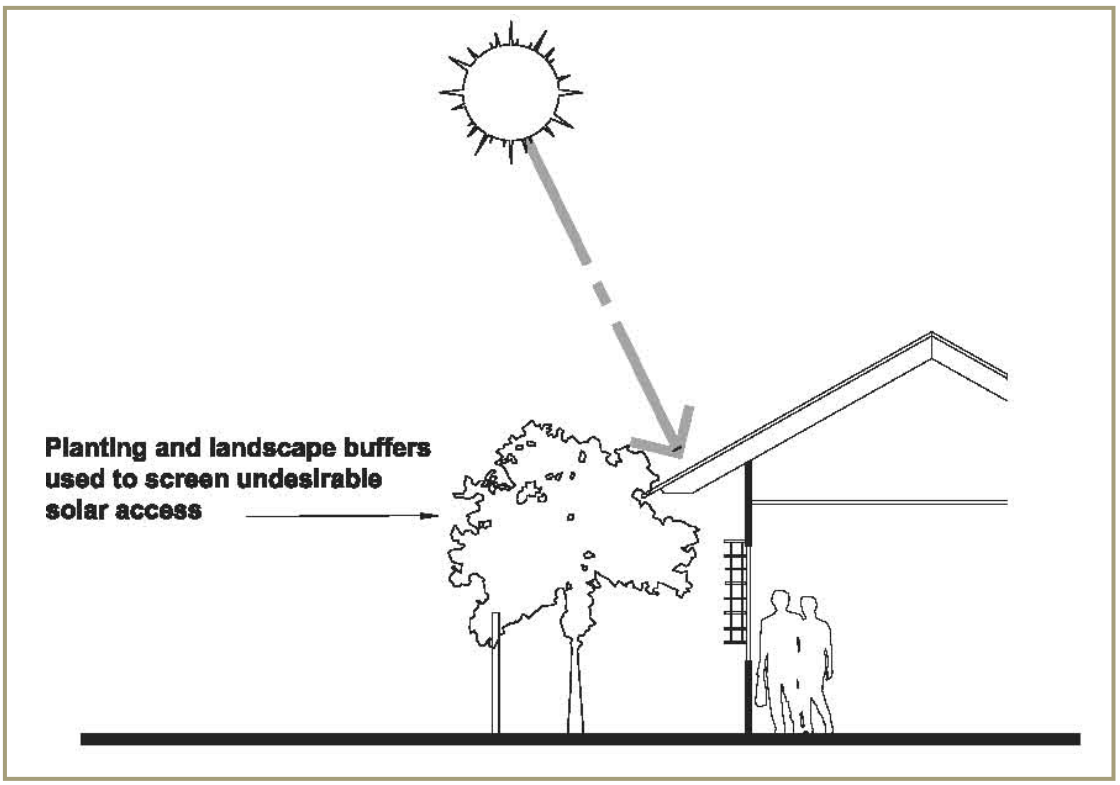


Figure 3.11 Planting, louvres and blinds to screen summer sun

3.6.2 BASIX

- **Objective**

  To ensure that developments are environmentally sustainable in terms of energy and water efficiency.

- **Controls**

  (a) All applications for dwellings are to be accompanied by a BASIX Certificate

  (b) Developments are to incorporate all commitments stipulated in the BASIX Certificate.

3.6.3 Visual and acoustic privacy

Visual privacy principles are illustrated at Figure 3.14.

- **Objective**

  To ensure that buildings are designed to protect visual and acoustic privacy.

- **Controls**

  - **Visual privacy**

    (a) Direct overlooking of main habitable areas and private open spaces should be minimised through building layout, window and balcony location and design, and the use of screening devices, including landscaping

    (b) Habitable room windows with a direct sightline to the habitable room windows in an adjacent dwelling within 9.0m are to:

      (i) Be offset from the edge of one window to the edge of the other by a distance sufficient to limit views into the adjacent window, or

      (ii) Have a sill height of 1.7m above floor level, or

      (iii) Have fixed obscure glazing in any part of the window below 1.7m above floor level

    (c) Fixed screen or opaque windows can be built closer than non-habitable room windows.

  - **Acoustic privacy**

    (a) The design of attached dwellings must minimise the opportunity for sound transmission through the building structure, with particular attention given to protecting bedrooms and living areas

    (b) In attached dwellings, bedrooms of one dwelling are not to share walls with living spaces or garages of adjoining dwellings, unless it is demonstrated that the shared walls and floors meet noise transmission and insulation requirements

    (c) Living areas and service equipment must be located away from bedrooms of neighbouring dwellings.

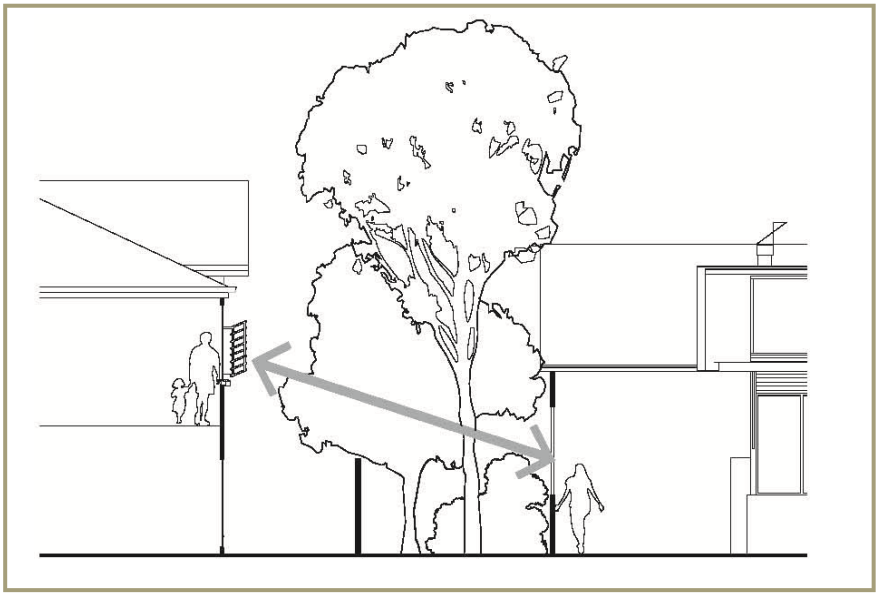


Figure 3.12 Visual privacy between buildings

3.6.4 Landscaping (private domain)

- **Objectives**

  (a) To contribute to effective management of stormwater and energy efficiency, and to improve visual amenity

  (b) To encourage the use of native species of flora and low maintenance landscaping

  (c) To retain and integrate existing landscape elements such as vegetation and topographic features in the design of new development

  (d) To assist in the management of salinity

  (e) To ensure the provision of high quality private open space meets residents' needs for outdoor activities, privacy, outlook and amenity.

- **Controls**

  (a) Use of low flow watering facilities are encouraged to avoid over- watering by residents

  (b) Low water demand drought resistant vegetation is to be used in common landscaping areas, including native salt tolerant trees

  (c) Trees planted on the north side of private open space areas and habitable rooms should be deciduous

  (d) A minimum of one tree is to be provided where possible within the front setback area of every dwelling. This may include existing trees that are to be retained within the front setback area

  (e) Use of smart irrigation systems that respond to soil moisture and climate conditions to reduce over-watering is encouraged

  (f) Landscape design is to take into consideration grouping of plants with similar water needs

(g) Large trees are to be kept a safe distance from housing to prevent uneven drying of soil and foundation cracking

(h) Subsoil drains are to be installed around the perimeter of residences and connected to the stormwater system to prevent accumulation of water and concentration of salts.

Note: Additional design guidelines relating to landscaping of the private domain are included in the Developer Design Guidelines (DDGs).

3.6.5 Bush fire construction standards

- **Objective**

  To ensure the protection of life and property from the threat of fire.

- **Controls**

  (a) Development within 100m of land identified as bush fire prone is to be constructed in accordance with the relevant *Bushfire Attack Level (BAL)* in accordance with *Australian Standard 3595-2009 – Construction of buildings in bushfire prone areas*

  (b) Any structures (e.g. fences, garden sheds, decks, pergolas, pool surrounds etc) located within the Asset Protection Zones (APZs) are to be non-combustible (i.e. non-combustible under *Australian Standard 1530.1* and not deemed combustible pursuant to Clause 12 of Volume 1 of the *Building Code of Australia*).

3.6.6 Servicing

- **Objectives**

  (a) To ensure that adequate provision is made for site facilities

  (b) To ensure that site facilities are functional and accessible to all residents and are easy to maintain

  (c) To ensure that site facilities are thoughtfully integrated into development and are unobtrusive.

- **Controls**

  (a) Underground services are required for all domestic serving utilities, including electrical services

  (b) Garbage and mailbox structures are to be integrated with the overall design of buildings and/or landscaping.

- **Objectives**

  (a) To avoid the generation of waste through design, material selection and building practices

  (b) To plan for the types, amount and disposal of waste to be generated during excavation and construction of development

  (c) To encourage waste minimisation, including source separation, reuse and recycling

(d) To ensure efficient storage and collection of waste and quality design of facilities.

- **Controls**

(a) A Waste Management Plan and associated documentation in accordance with Blacktown DCP 2015 Part G - *Site Waste Management and Minimisation* is to be submitted with all development applications, where relevant.

(b) Development must demonstrate that the design takes into account refuse storage and collection without reducing the amenity of the dwelling or neighbouring lots

(c) Storage areas for rubbish bins are to be located away from the front of development where they have a significant negative impact on the streetscape, on the visual presentation of the building entry and on the amenity of residents, building users and pedestrians

(d) Any private road is to be designed and built in accordance with Council's *Engineering Guide for Development*. Details must be shown on the engineering design plans for development. Engineering certification must be submitted prior to the issue of the occupation or subdivision certificate (whichever occurs first).

Appendix 1 Development Application checklist

A.1.1 Subdivision DAs

All DAs for land subdivision are to be accompanied by the following information where relevant. Generally 4 copies of each plan / report are required to be submitted.

- Completed **DA Form**, signed by the owner(s) of the development site. This is to be lodged with the applicable **DA fee**.
- **Statement of Environmental Effects** that demonstrates how the proposal meets all relevant objectives and provisions of Blacktown DCP 2015, Blacktown LEP 2015 and Section 79C of the *Environmental Planning and Assessment Act 1979*. It also should set out measures to be taken to mitigate any likely adverse impact of the proposal.
- **Site Plan** showing the site location, boundary dimensions, site area, north point, location and uses of existing adjoining buildings, existing site levels and services.
- **Tree Survey Plan** identifying existing trees, trees to be removed and retained.
- **Subdivision Plan** showing details of existing and proposed subdivision pattern (including number and size of lots, road locations and dimensions).
- **Engineering Plan** showing earthworks, finished ground levels to Australian Height Datum (AHD) and proposed retaining walls.
- Details of any consultation / agreements with public authorities responsible for the provision or amplification of utility services required by the subdivision.
- **Landscape Plan** to include matters specified in Sections 2.3.1 – 2.3.4.
- **Integrated Water Cycle Management Report**. See Part J *Water Sensitive Urban Design and Integrated Water Cycle Management* of Blacktown DCP 2015.
- **Drainage Plan**. See Part J of Blacktown DCP 2015.
- **Erosion and Sediment Control Plan**. See Part J of Blacktown DCP 2015.
- **Details relating to issues at Section 2.5.6** (for land within 100m of the Richmond Road site boundary).
- **Salinity Report** prepared by a suitably qualified consultant reporting on the conditions of the site, the impact of the proposed development on saline land, the mitigating measures that will be required during the course of construction and a requirement that the consultant sign off on the project upon the completion of works.
- **Contamination Report** prepared by a suitably qualified consultant which includes tested samples over the subject area under consideration. The Report is to be prepared in accordance with *SEPP 55 – Remediation of Land.*
- **Aboriginal Archaeological Report** prepared by a suitably qualified consultant and supported by the comments of the local Aboriginal groups.

A.1.2 Building DAs

All DAs for building are to be accompanied by the following information (where relevant). Generally 4 copies of each plan / report are required to be submitted.

- Completed **DA Form**, signed by the owner(s) of the development site. This is to be lodged with the applicable **DA fee.**
- **Statement of Environmental Effects** that demonstrates how the proposal meets all relevant objectives and provisions of Blacktown DCP 2015, Blacktown LEP 2015 and Section 79C of the *Environmental Planning and Assessment Act 1979*. It also should set out measures to be taken to mitigate any likely adverse impact of the proposal.
- **Site Plan** showing the site location, boundary dimensions, site area, north point, existing vegetation and trees, location and uses of existing adjoining buildings, existing site levels and services.
- **Building Plans** showing dimensioned floor plans, elevations of all facades including a schedule of external finishes, colours and textures, sections showing heights and finished ground levels to Australian Height Datum (AHD), fencing treatment, and all BASIX commitments.
- **Landscape Plan** showing planting species, areas of landscaped area and private open space.
- **Integrated Water Cycle Management Report**. See Part J of Blacktown DCP 2015.
- **Drainage Plan**. See Part J of Blacktown DCP 2015.
- **Erosion and Sediment Control Plan**. See Part J of Blacktown DCP 2015.
- **BASIX Certificate** in accordance with *State Environmental Planning Policy (Building Sustainability Index: BASIX*) *2004* see: www.basix.nsw.gov.au
- **A4 Notification Plan.**
- **Shadow Diagrams** (for 3 storey dwellings, attached dwellings / multi dwelling housing).

Appendix 2 Approved golf course layout plan

The golf course layout plan below was approved by Council on 17 November 2004.

